IN THE CIRCUIT COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION

CASE NO.: 24-DR-001150
DIVISION: D

SARAH HANSON,
Petitioner,

and

CHRISTOPHER HANSON,
Respondent.
_____/

COURT PROCEEDING
Friday, April 4, 2025
1:06 a.m. - 5:20 p.m.

HONORABLE KELLY AYERS
800 East Twiggs Street
Tampa, Florida 33602
_____/

REPORTED BY:

Nika M. Priestley, Notary Public

State of Florida

STENOGRAPHICALLY REPORTED

COMPUTER-AIDED TRANSCRIPTION

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(Whereupon, the court proceeding commenced.)

THE COURT: All right. We are here on Hanson v. Hanson, Case 24-DR-1150, and we are here in person at the courthouse. If we could start with appearances, starting with Mrs. Hanson's side, please.

MR. DAVIS: My name is Scott Davis. I'm counsel for the petitioner, Sarah Hanson. To my right and to the Court's left is Sarah Hanson.

THE COURT: Mr. Hanson.

MR. HANSON: My name is Christopher Hanson. I'm appearing on behalf of myself.

THE COURT: Okay. All right. And I have done my very best today to draft a roadmap and we will go through that. We do have the rest of the afternoon, but I know we have a lot to get through. So we're going to be very strict about the rules today. So when someone asks a question, please just answer the question. We're not going to take this time to have any extra commentary or take the ability to throw unkind thoughts towards each other. We're going to just focus on what we need to get done today and that's what we're going to get done. If I ask you to stop, I'm going to limit you because we're just going to answer questions and do what we need to do

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today.

I see Ms. Ivy from [redacted] School is here. So Mr. Hanson, what do you want her to testify to with respect to this case, sir.

MR. HANSON: With respect to the Guardian ad Litem, Your Honor.

THE COURT: And just that motion? Because I believe there's also a motion -- I think a temporary motion in which Mrs. Hanson is looking for majority timesharing. Does Ms. Ivy have anything to add to that?

MR. HANSON: Yes. I would think that was all part of the same process. I was thinking the Guardian ad Litem would come before any change in custody arrangement, but...

THE COURT: That's a possibility, sir. So I've got this into five categories if everybody wants to write it and I'm open to suggestions. It doesn't mean we're going to do it this way, but the first category I have is the amended order to show cause, which is about limiting communications. I have that we have Docket 141, which is my order, and then we have Responses 135 and 137. Does that everyone agree that's where we're at on that?

MR. DAVIS: Yes, Your Honor.

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THE COURT: I did my order and I read both of your responses and I have them printed. Does that sound good, Mr. Hanson?

MR. HANSON: That sounds right, Your Honor.

THE COURT: All right. The next thing I have as a category is discovery. We have Wife's Objection to Husband's Second Request to Produce, which is Docket 101, which also includes a motion for protective order and then Mr. Hanson filed a response docketed at 162. Then I have that there are a few of wife's motions, which are three. One is the motion for Guardian ad Litem at Docket No. 69, a motion for psych exam at Docket No. 77, and a vocational evaluation motion docketed at 114.

MR. DAVIS: Yes, ma'am. What category is the Court --

THE COURT: Just wife's motions.

MR. DAVIS: Okay. Wife also has --

THE COURT: No. I'm going to -- give me one second, Mr. Davis. Then I have a category called temp relief. Okay. So on temp relief we've got wife's motion for temp relief, Docket No. 96 and then Mr. Hanson, husband, has filed a response and he has a request for temp relief docketed at 111.

MR. DAVIS: Yes, ma'am.

THE COURT: Then Mr. Hanson requested of my judicial assistant a case management and with respect to that, he wanted to talk about the motion to void the post MSA at Docket 146 and then I also have taken the liberty -- fortunately, with the voluminous amount of this case I didn't get to the whole thing, but I've got it all printed out and if we have time, I would like to go through all of the motions that are still pending. I want to make sure I've taken care of all of them and especially any rehearings that I need to do.

I have a folder already, the Hanson folder, where I have been printing things. I was able to go through that. So I've got three right now and then two stacks of correspondence from you Mr. Hanson, I think just deals with a motion each one. If we have time I was going to see what was pending just so we could talk about getting those scheduled or talk about the ones I might possibly need to review and decide whether I'm going to rule on them or set them for hearing. That's all I've got as noticed for today. Anything else from you, Mr. Hanson?

MR. HANSON: If I may, Your Honor, just on the case management conference part and the motion to void the postmarital agreement, it's really just a

question of whether I can issue that subpoena now. We had those communications. The fact there wasn't a motion to void the postmarital agreement was an issue. I thought that would handle it, but Mr. Davis disagreed. We have talked about having just a 15-minute hearing on that.

THE COURT: I think today, based on what I've looked at, especially when we get to the discovery issue, now that's going to be a little bit of a different ruling based on the fact you have filed a motion to void the post MSA. So if there's any discovery that you're looking for that would be reflective of that, that will probably be open to you now receiving that discovery. I think we're going to see how that goes when we discuss the discovery. If it doesn't complete what you need, we'll discuss that in the case management.

Just to make it clear, I'm not hearing the motion to void the post MSA. It's just that it's pending and it will have some ancillary consequences possibly depending on what Mr. Davis has to say in response. Okay.

MR. DAVIS: May I address the Court briefly.

THE COURT: On what?

MR. DAVIS: It's actually unrelated. I just

want to make Your Honor aware of something. There's an emergency that cropped up in one of my cases today in Judge Bauman's division and I emailed the judicial assistant and said if y'all need me this afternoon, I'm with Judge Ayers from 1:00 to 5:00. If Judge Ayers is okay with me addressing that for a few minutes, I'll be there. I just want Your Honor to know that's possible that may be requested. I think probably not, but it's possible.

THE COURT: Well, our offices happen to be next to each other and I happened to just see him and mentioned I'm coming into a half day. He knows I'm here.

MR. DAVIS: Yes, ma'am.

THE COURT: I don't think he knew I was with you folks. He knows I'm here. I know he wouldn't hesitate if that happens. And you have your phone and if you get any messages, that's fine with me too.

MR. DAVIS: Yes, ma'am. Thank you.

THE COURT: Not a problem. So it might behoove us to start with wife's motions. I would like to get the school teacher or principal out as soon as possible. Go to wife's motion and segue into the temp relief. Will that work with everyone? And

then we can start with the [redacted] individual.

MR. DAVIS: From my perspective, wife's temp relief, psychological evaluation, Guardian ad Litem motion really should be the same evidence.

THE COURT: It's all the same. Just in an abundance of caution, because this case has been a little topsy-turvy, I wanted to let both of you know that I have three children. All three of them attended [redacted] My oldest is 29, my next is 27, and my other one is 24. So it's been a very long time. We left [redacted] when my little one was in the third grade. I don't believe I know anybody that works there. I haven't recognized any of the names you guys presented, but I want you to know my children went there a very long time ago. I think they've had a change of hands with respect to everyone. I did want to let everyone know. It might be a good thing because I know how wonderful that school is?

MS. HANSON: Why did she leave?

THE COURT: Oh, real quick. One went through ninth grade and I just wanted a bigger experience for him for high school. Then, my daughter, she has to go somewhere new every few years and my little

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one was struggling academically. So I had to do something different.

MS. HANSON: I was just curious.

THE COURT: They actually came to me and said he needs more attention than [redacted] Nothing bad at all.

MS. HANSON: I know they don't accommodate.

THE COURT: Yeah. I had to do the IEP thing. All right. So let's go ahead and, again, I don't know Ms. Ivy. We'll go ahead and get her in and see what's going on.

Ms. Ivy, Ms. Ivy.

THE WITNESS: Yes. I am trying to get the screen on so we can get a visual. Okay. There we go.

THE COURT: All right. The speaker where you are going to be heard from is between all the litigants. So it's a little bit far from me. So I have to be a little bit loud, but I will be doing the least amount of talking. All right. Have you ever testified before, Ms. Ivy?

THE WITNESS: No, ma'am.

THE COURT: Can you please state your name for the record and spell it.

THE WITNESS: My name is Emilia. E M-I-L-I-A.

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Last name is I-V-Y.

THE COURT: All right. Can you raise your right hand for me, please? Do you swear and affirm that the testimony you're about to give will be the truth, the whole truth, and nothing but the truth so help you God?

THE WITNESS: I do.

THE COURT: All right. You may put your hand down. Since you've never testified, you are here present. We are live in my courtroom. You have been called by Mr. Hanson who is also present in the courtroom. Ms. Hanson is present along with her attorney, Mr. Davis. You are called by Mr. Hanson. So he's going to ask you whatever questions he has followed by Mr. Davis. I'm pretty flexible. So if Mr. Hanson needs to ask any follow-up questions I will pretty much permit it. I might possibly have some questions for you and we're calling you first so that you can get back to your day job. Okay?

THE WITNESS: Thank you.

THE COURT: All right. Mr. Hanson, go ahead and inquire. Just so let you know, I have a screen up here. So they can all see you, but you can't see them.

THE WITNESS: Okay.

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THE COURT: Go ahead, Mr. Hanson.

MR. HANSON: Thank you, Your Honor.

WHEREUPON:

EMILIA IVY,

a witness, having been duly sworn to tell the truth, the whole truth, and nothing but the truth, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. HANSON:

Q. Good afternoon, Ms. Ivy. Thank you very much for being here today. I'll try to make this quick so you can get back to your day. Can you briefly explain what your current position is with [redacted]

A. Yes. I am the early childhood director with [redacted] School.

Q. How long have you been in that position?

A. I just started this position last year. July.

Q. And what's the goal in your position or what's your main objective in terms of how you're assisting the lower school?

A. I am supporting teachers and children, keeping updates, and making sure that things are documented. Having conversations with teachers. Making sure they're having best practices when teaching students. I'll also deal with any behavioral concerns I have in the

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classroom. They would come to my office and we would talk about it or I help support the teacher on how to handle any type of issues that come up.

Q. If there's a child having significant behavioral problems, they call you in to assist with that?

A. Yeah. Usually, currently, obviously, my first year, I have made sure that my presence is also in the classrooms and we're usually, right now, able to acknowledge them before they explode.

Q. Do you deal with parents in your position or is that something you leave to the teachers to deal directly with the parents?

A. I do deal with parents in my position.

Q. And before you started the position that you currently have, what position did you have at [redacted]

A. I was a Pre-K 4 teacher.

Q. And before that?

A. Before that, Pre-K 4. Before that Pre-K 3. Before that, that was it.

Q. The Pre-K 3 one is the important one. Was your change from Pre-K 3 to Pre-K 4 perfect so my daughter, [redacted] got to have you for two years in a row?

A. Yes. I was able to have [redacted] for two years in a row. That was great.

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Q. And did you also have [redacted] the next year?
A. I did have [redacted] last year.
Q. And do you continue to see them at the school just in passing? Were you able to talk to them and get updates from them?
A. Yes. I do see them often. Almost every morning I do see them. My goal is to always walk by and to see all students in the area that I cover. So I do see them almost every morning and throughout the day.
Q. And do you keep in touch with their teachers?
A. Yes.
Q. Have there -- well, strike that.
Has there ever been a single complaint about either of the kids' behavior during their four years at [redacted]
A. I wouldn't call it a complaint. I would more call it concern.
Q. What's the concern?
A. Tired. Sleepy.
Q. And when did this concern develop?
A. My Pre-K 4-year.
Q. For which child?
A. It would be with [redacted] I'm sorry. With [redacted]
Q. And how often did you notice this concern?

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A. Well, actually I'm going to have to retract that. It was originally with [redacted] and then, as [redacted] moved on, the same thing was with [redacted] So then that's when I just saw the changes because I did not have [redacted] prior.

Q. Are you aware that they have separate rooms, but they insist on sharing a room?

MR. DAVIS: Objection. Calls for a hearsay response.

A. Yes.

THE COURT: Hold on. Hold on. Hold on. If you hear someone say objection, you have to pause for a second. What was your objection?

MR. DAVIS: Calls for a hearsay response and foundation.

THE COURT: And your response, Mr. Hanson?

MR. HANSON: It's whether she has knowledge of the kids' practice.

THE COURT: I know. But the only way she would have knowledge of how the girls shared a room is if the girls told her unless Ms. Hanson told her. You can inquire about that, but she's not allowed to tell me anything that the girls said.

MR. HANSON: I'm just asking about her understanding. I'm not offering it for the truth of

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the matter asserted.

THE COURT: But if her understanding came from the girls, it's hearsay.

MR. HANSON: But if it's not for the truth -- I'm not trying to prove that the kids actually have separate rooms and sleep in the same room. I'm trying to prove Mrs. Ivy is under the impression that happens.

THE COURT: That's the same thing. Why else would you want me to know about their living arrangements unless you know how they have their living arrangements.

MR. HANSON: To ask Mrs. Ivy about her state of mind.

THE COURT: Whose state of mind?

MR. HANSON: Mrs. Ivy's.

THE COURT: Okay. I'm going to sustain the objection. You can re-ask. Mrs. Ivy, any information you have about the girls' living arrangements at home, did it come from the girls or Mrs. Hanson or Mr. Hanson?

THE WITNESS: One time from the girls and then one time from Mr. or Mrs. Hanson.

THE COURT: Okay. You can't tell me anything the girls have told you. If you have any knowledge

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that came from Mr. Hanson or Mrs. Hanson, you may testify to it. Now go ahead and ask your question.

MR. HANSON: So I'm not allowed to ask her about what the kids told her?

THE COURT: No. That's hearsay.

MR. HANSON: If that's offered for the truth of the matter asserted, then it's not hearsay.

THE COURT: Well, why else would you want me to know?

MR. HANSON: Effect on the listener, state of mind. There's numerous reasons. There's several purposes.

THE COURT: Your objection is sustained. Yes. Your objection is sustained.

MR. HANSON: Okay.

BY MR. HANSON:

Q. How significant of a concern was this? I think you said had a complaint from the kids about being tired once and then Mrs. Hanson said that the kids were tired once?

A. No. Neither of the adults have stated they were tired. My observation is that they were tired. They act sleepy. They would just come in mopey and tired sometimes.

Q. Did you make note of this?

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A. I did.
Q. Do you have those documents today?
A. No. I don't have those documents like right here, but they are in our Facts system.
Q. Okay. How would I go about getting a copy of this?
MR. DAVIS: Object to relevance.
THE COURT: Overruled.
A. It's part of the documents that you have requested.
BY MR. HANSON:
Q. Okay. So you'll be -- in conjunction with subpoena for appearance today, you don't have the documents to produce now, but someone is creating those documents for us?
A. No. I have all the documents that you have requested. I have them all ready for you.
Q. Are you able to forward them to us today?
A. Sure. I can.
Q. That would be great.
A. I just have to make sure with the school that I can release those.
Q. Okay. Sure. If it's all right with the Court, we can take a quick break.
THE COURT: No. We're not taking a quick

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break.

A. Just so you know, Mr. Hanson, it's just that they were tired. She was tired. [redacted] was tired.

BY MR. HANSON:

Q. So there's just a notation of [redacted] being tired one day in 2023 or 2024?

A. Correct.

THE COURT: Actually, so that we don't get off tangent, that's already my first question. Can you be more specific? You noticed [redacted] was tired last year. So that would be the last school year, '23-'24?

THE WITNESS: Correct.

THE COURT: And then [redacted] was the year before last?

THE WITNESS: Correct.

THE COURT: So you were a Pre-K 4 teacher last year?

THE WITNESS: And the year before.

THE COURT: So last year you noticed that [redacted] was tired. The year before that you noticed [redacted] was tired.

THE WITNESS: Correct.

BY MR. HANSON:

Q. Do you know the dates for each of those events?

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A. I don't have it right now with me.
Q. Okay. But it's just one occasion for each of the kids. There's a notation that says kids' tired?
A. Correct. It would have been springtime, one time documented. Personally, I have observed it myself.
Q. So you're saying you've observed the kids being tired, but only documented it once?
A. Correct. During our spring -- I'm sorry. Our fall parent-teacher conference.
Q. During the kids' time at [redacted] is there any other concern that's documented about their health or welfare other than one occasion each when they seemed tired?
A. No.
Q. Does it seem like the parent -- strike that.
Does it seem like the children have loving and involved parents?
MR. DAVIS: Object to foundation. Vague.
THE COURT: I'm sorry. I didn't understand.
MR. DAVIS: Object to foundation and vague.
THE COURT: Any response, Mr. Hanson?
BY MR. HANSON:
Q. Mrs. Ivy, you see both Sarah and I at the school periodically interacting with our kids. Is that fair to say?

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A. I do see you guys at school. Yes.
Q. And we've always attended conferences, Christmas programs, asked about their well-being, and asked if we could help in any way. Is that fair to say?
MR. DAVIS: Object to leading and compound question.
THE COURT: Sustained.
BY MR. HANSON:
Q. Sorry, Mrs. Ivy. I was trying to do it in fewer questions, but I'll break it down in one-by-one form. Have you observed both Sarah and I coming to both the children's programs and chapel days at school?
A. Yes.
Q. When you seen us interact with our kids, does it seem like we have positive, loving, healthy relationships with each children? Each child.
MR. DAVIS: Object to foundation. It's also leading and I question the witness's competency to testify about loving relationships.
THE COURT: I'm going to overrule and give you a little latitude, Mr. Hanson. You can answer the question.
A. Can you repeat that again?
BY MR. HANSON:
Q. Sure. In the interactions you've witnessed

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with myself and the children and Sarah -- I'm sorry. I'll just limit it to myself and the children for now. Does it appear, in your experience, that there is a close, loving bond?

A. I do see that you are there and they come to you. They do not run away from you. I just don't feel comfortable saying the loving part because I understand that later I end up finding out you guys were going through a separation. So there was some different happenings and it was -- it was different for the children.

Q. I'm confused about what you're referring to, Mrs. Ivy. Can you expand, please?

A. Yes. They only wanted to go home with their mother.

Q. When did they say that?

A. I don't remember exact the date, if you want specific dates, but I started to find out and that's when you exposed to me that you guys were being separated and going through a separation and that one party was going to pick up and the other one wasn't. And that's when it was clear that the kids just wanted to be with their mom, which was nothing odd, but I'm just answering the question.

Q. Why wouldn't you ever share that with me,

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Ms. Ivy?

MR. DAVIS: Object to relevance.

THE COURT: Overruled.

THE WITNESS: Does that mean I'm supposed to answer?

THE COURT: Yes, ma'am. I'm sorry. Thank you.

A. I didn't feel like, as the teacher, it was my place to tell you that your children didn't want to come home with you.

MR. HANSON: Your Honor, I'm going to have to call my kids as witnesses at this point.

THE COURT: You're going to have to a file a motion for child testimony. That's a whole separate issue.

MR. HANSON: I'll continue with this.

BY MR. HANSON:

Q. Ms. Ivy, where did you document these conversations?

A. I didn't document those conversations. As an educator at that time, I would just be like dad loves you. It's okay. I know you're going to miss your mom. He's there for you and that's it. We got over that hump.

Q. How many times did these conversations happen?

A. I can't recall how many times.

Q. Was it [redacted] or [redacted] or were they both saying it at the same time?

A. The only time I would experience it would probably be during the chapel time that it would come out because I didn't have them together at the same time, but they would be tearful.

Q. They would be tearful at what point with chapel time?

A. I can't recall. I'm covering a lot of children at that moment. You know, monitoring them and then escorting them to the car.

Q. But at chapel I wouldn't be taking them. At chapel they would be going back to class?

A. No. Chapel is where we dismiss the students from, that you pull up to. That's the chapel building. I would pull them out of the building and put them in the car.

Q. Are you referring to [redacted] on gymnastics days?

A. No. This is -- this isn't recent.

THE COURT: I'm sorry. Did you say it is recent or it's not?

THE WITNESS: It's not.

BY MR. HANSON:

Q. How long ago are we talking about?

A. I mentioned it before when you guys just

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started to explain to me that you were going through a divorce or separation.

Q. So this is like two years ago then?

A. Right. Those are the years you're referring to.

Q. Well, have either of the kids expressed any concern about coming home with me or wanting to see me in the past year?

MR. DAVIS: Objection. Calls for hearsay response.

THE COURT: Sustained.

MR. HANSON: She just testified about what people said two years ago.

THE COURT: Nobody objected.

MR. HANSON: Okay.

BY MR. HANSON:

Q. All right. Mrs. Ivy, do you have any reason to believe that either child has any concerns about coming home with me or spending time based upon anything that's happened in the past year?

MR. DAVIS: Objection. Calls for speculation and possibly hearsay.

THE COURT: Sustained.

MR. HANSON: Your Honor, did you meet with Sarah at all about giving testimony today?

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A. Not at all.
BY MR. HANSON:
Q. Mrs. Ivy, have you talked to Sarah about giving testimony today at all?
A. Not I have not.
Q. Do you have any reason to think that me having 50/50 custody of the kids is not in their best interest?
MR. DAVIS: Object to relevance. Foundation. It also really calls for legal conclusion.
THE COURT: Sustained as to legal conclusion.
MR. HANSON: Your Honor, if you had concerns about whether there was anything with the children's custody --
THE COURT: Mr. Hanson, you keep calling her Your Honor, which doesn't offend me. I just want to make sure the record is clear for you.
MR. HANSON: No. I'm sorry. I'm just a little bit flabbergasted at this. I cannot believe what I'm hearing.
THE COURT: You can't have commentary, sir.
BY MR. HANSON:
Q. All right. Mrs. Ivy, if you had any concerns about whether the children's home situation presented any dangers or harms for them, would you speak up about it?

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A. Yes. I believe I would. Of course. It's my job to as an educator.

Q. Just so I'm clear, the only times you can ever recall the children expressing any concerns about coming home with me or spending time with me was about two years ago?

MR. DAVIS: Objection. Assumes facts not in evidence. She said --

MR. HANSON: She can testify.

MR. DAVIS: Well, I won't elaborate unless the Court wants me to.

THE COURT: I'll let her answer the question. Overruled.

A. Can you repeat the question?

BY MR. HANSON:

Q. Sure. Is the only time that either of my children ever expressed any concerns about me picking them up or them staying with me, that was about two years ago? That was the only time, right?

A. It would have been last year. When I had [redacted] in Pre-K 4 would have been the last time I would have heard that coming from her.

Q. I thought you said it was when you didn't have -- so it would have been a full year ago then? One full year ago?

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A. It would have been during the time I was a Pre-K 4 teacher and I had [redacted] in my class, which was last year.

Q. Which was basically a full calendar year ago?

A. Correct. Yes. Because I started this position in July of last year.

Q. Have both myself and Mrs. Hanson always been very complimentary and grateful for [redacted]

A. Yes, you have.

Q. There are some things going on right now that potentially have a huge impact on the kids and I wanted the teachers to fill out child wellness forms. Is that something [redacted] will do from time to time when parents are going through divorce?

A. I would have to ask admin if they do that often. This would be my first time having this type of experience.

Q. Do you have any idea why Sarah would not want to have information from [redacted] in assessing what's in the kids' best welfare moving forward?

MR. DAVIS: Objection. Assumes facts not in evidence and speculation.

THE COURT: Sustained.

MS. HANSON: I'm sorry.

BY MR. HANSON:

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Q. Mrs. Ivy, I want you to assume I tried to get information informally from [redacted] through filling out these child wellness forms because I thought it was critical that the school be heard and I want you to assume that Mrs. Hanson and her attorney objected, which prevented that from happening. Do you know of any reason why Mrs. Hanson would be disinterested in what [redacted] has to say about the kids and their well-being?

MR. DAVIS: I'm objecting. Speculation.

THE COURT: Sustained.

MR. HANSON: I'm asking if she has any information about it. It's not -- I'm not asking her to speculate. She knows or she doesn't know.

THE COURT: Okay. I've already sustained the objection. You can rephrase.

BY MR. HANSON:

Q. Ms. Ivy, do you think that I would have wanted to know if my kids were telling you things like they didn't want to see me?

MR. DAVIS: Objection to relevance and speculation.

THE COURT: I'll overrule that objection as to if you know the answer, ma'am. Please do not speculate.

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A. Repeat. I'm sorry. Repeat your question then.
BY MR. HANSON:
Q. Do you think I would have wanted to have known if the kids were saying things like they didn't want to go home with me? Do you think just knowing me and our conversations, would that have been something I would want to address?
A. What I said was that the children were tearful and wanted to be with their mother.
Q. Can you tell me what documents you reviewed in preparation for speaking today?
A. Experience that I had with both the girls and just the documentation that we have from the parent-teacher conferences that were both pulled from when I was with them and currently with [redacted] being with Ms. Schneegold's classroom, her first grade class.
Q. Would Ms. Schneegold and Patet have better information about how the kids have done this past year?
MR. DAVIS: Objection. Foundation. Speculation.
THE COURT: Overruled. You can answer the question.
A. You said -- what was the question again?
BY MR. HANSON:
Q. Would Mrs. Patet and Mrs. Schneegold have

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better information about how the kids are doing currently as they are the current teachers?

A. As far as how they're currently feeling right now?

Q. As far as how they're doing socially in school, mechanically, anything.

A. You haven't asked me about how they're doing socially. You haven't asked me about how they're doing mechanically, how their academics are. You're only asking me how they feel about a time that they were tearful that you guys are going through a separation.

Q. Okay. So yeah. I guess maybe I got sidetracked off that, Mrs. Ivy. I thought one of my only four or five questions would be please tell me about my kids. Can you please tell me about my kids and what your experience is of them?

A. Sure. Both are joyful girls. They have friendships. They're not aggressive. They're very loving. They both enjoy both their parents. They enjoy their friends. They love being here at [redacted] They do well in class.

Q. If there were something that's -- that were open to them, that would draw their attention to the divorce again and new and ways where they actually get put into the system, would you think there'd be any

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concerns that that could complicate their healing from the traumatic experience with the separation?

MR. DAVIS: Objection to foundation. Assumes facts not in evidence. Relevance and witness's qualifications to answer that type of a question.

THE COURT: Sustained.

BY MR. HANSON:

Q. As an early childhood educator, do you deal with kids that go through trauma?

A. We do have some children here that have experienced trauma. Yes.

Q. And with those children, would you do whatever you could to try and avoid forcing them to relive the trauma?

MR. DAVIS: Object to relevance. It's a vague question.

THE COURT: Sustained.

BY MR. HANSON:

Q. Mrs. Ivy, from what you've testified about not hearing anything from the kids having concerns coming with me or not having concerns or being tearful over Sarah not picking them up, being a year ago, does it seem that the kids have likely recovered from the trauma in some significant way?

MR. DAVIS: Objection. Relevance, speculation,

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assumes facts not in evidence, and the witness's qualifications to testify as to the mental state.

THE COURT: Sustained.

BY MR. HANSON:

Q. Have you seen anything or heard anything about the kids that would cause you to have a change -- strike that.

Let me rephrase that. Ms. Ivy, have you observed anything with the kids or from speaking with them or the teachers that would cause you to think that any changes in their living situation is a good idea?

MR. DAVIS: Objection to foundation. Part of it calls for hearsay. It's speculation. Witness is not qualified and to a certain extent, I think calls for a legal conclusion.

THE COURT: Sustained.

MR. HANSON: Your Honor, may I respond.

THE COURT: Oh, sure. I'm sorry.

MR. HANSON: Thank you. I'm not offering it as an expert opinion. I'm offering it in terms of this is probably the third closest person to my kids in the world and I think that it's important for the Court to hear some information maybe even if it's not consistent with the strict evidentiary rules. And I don't actually think it violates the objection

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and I think it's an important question.

THE COURT: All right. I'm going to sustain the objection, but I'm going to treat you as a pro se litigant and not a lawyer right now. If you would ask the questions in simpler terms, you're making them complex. You're asking for professional opinions. You can ask just basic questions that you might be able to elicit some of the answers you want.

MR. HANSON: Thank you, Judge. I'll see if I'm still capable of asking questions in those terms. Madam Court Reporter, can you read back the last question for me?

THE COURT REPORTER: "Question: Have you seen anything or heard anything about the kids that would cause you to have a change -- strike that.

Let me rephrase that. Ms. Ivy, have you observed anything with the kids or from speaking with them or the teachers that would cause you to think that any changes in their living situation is a good idea?"

BY MR. HANSON:

Q. Have you seen anything to suggest that a change in their living situation is appropriate?

MR. DAVIS: I'm going to object to vague,

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foundation, and the witness is not qualified to testify about a change in the children's current living circumstances.

THE COURT: Sustained.

BY MR. HANSON:

Q. Based on your lay opinion, if we wanted you to tell us if they should change their living situation, should they?

MR. DAVIS: Same objection.

MR. HANSON: I'm just trying to make it simpler.

THE COURT: It's sustained. You're asking for a professional opinion. How would she even know what the living situation is? Her focus would be how are the girls doing at school? What are you seeing at school? She's not here to give -- that's my job.

MR. HANSON: Okay. All right. Thanks, Ms. Ivy. I don't have any other questions.

MR. DAVIS: Yes, ma'am. Thank you.

CROSS-EXAMINATION

BY MR. DAVIS:

Q. Ms. Ivy, good afternoon. My name is Scott Davis and I represent Mrs. Hanson. I just have a few questions for you. When you made an observation that

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the children were tired, do you know if there were times before or after the parties' separation?

MR. HANSON: It's vague and mischaracterizes the testimony.

THE COURT: Overruled.

MR. HANSON: I don't know which kid he's talking about. I don't know what time.

THE COURT: Overruled.

A. I would not be able to recall that until the time that it was documented for [redacted] fall observation, which was last year.

BY MR. DAVIS:

Q. And so you knew where the children -- you knew about the separation as of your fall observation last year, ma'am?

A. Yes. After the fall observation or during it, yes. I think it's when they disclosed that to me.

Q. Were you able to tell whether the children were tired after an overnight at a specific parent's home?

MR. HANSON: I'm going to object. That requires speculation.

THE COURT: Overruled.

A. Prior to that, of me observing that [redacted] would be tired, I didn't know where -- what house they were at or if they were still together. I couldn't tell

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you that. I do believe they were in the same household prior because it is noted that I actually had the conversation with both parents about it.

BY MR. DAVIS:

Q. Did you ever make a statement to the parents during a parent-teacher conference that you observed [redacted] being tired after being at one of the parents' homes specifically?

A. Yes, I do.

Q. What's the answer?

A. I didn't know.

Q. Go ahead, ma'am. I didn't mean to cut you off.

A. I do not recall which one it was. My goal was not to place it on any of the parents. It was just to acknowledge that she's been sleepy. She's been tired.

MR. DAVIS: May have just a moment.

THE COURT: Yes.

MR. DAVIS: Tender the witness. Thank you.

THE COURT: Do you have any follow-up questions, Mr. Hanson?

MR. HANSON: No.

THE COURT: Thank you, Ms. Ivy. I hope you have a good day. Appreciate you.

THE WITNESS: Thank you.

THE COURT: All right. With that being done,

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Mr. Davis, where would you like to go with respect to your -- the wife's motions for the GAL, the psych eval, and the vocation evaluation?

MR. DAVIS: Call the wife.

THE COURT: All right. Can you raise your right hand for me, Ms. Hanson? Do you swear and affirm that the testimony you're about to give will be the truth, the whole truth, and nothing but the truth so help you God?

MS. HANSON: Yes.

THE COURT: Mr. Davis, would you like Ms. Hanson to stay at your table or would you like her to go to the witness stand?

MR. DAVIS: I prefer she stay here. I only have one book.

THE COURT: Mr. Hanson?

MR. HANSON: I prefer up there so I'm not seeing if there's instructions and things going on.

THE COURT: All right. Ms. Hanson, come up to the stand please and if you need the book, Mr. Davis, you'll just let me know and you can go up to the witness stand.

MR. DAVIS: I got it on computer. It will take me just a second.

THE COURT: No problem. I have no problem with

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your going up there as long as you let the bailiffs know you're getting up.

MR. DAVIS: Yes, ma'am.

THE COURT: Thank you.

MR. DAVIS: May I inquire.

THE COURT: Yes.

WHEREUPON:

SARAH HANSON,

a witness, having been duly sworn to tell the truth, the whole truth, and nothing but the truth, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. DAVIS:

Q. Ma'am, please state your full name.

A. Sarah. S-A-R-A-H. Sorgie. S-O-R-G-I-E. Hanson. H-A-N-S-O-N.

Q. Who are you presently married to?

A. I am married to Christopher Alan Hanson.

Q. And do you have any minor children with Mr. Hanson?

A. Yes. [redacted] and [redacted] [redacted] seven and five.

Q. And when did you and Mr. Hanson separate?

MR. HANSON: I object that it's vague.

THE COURT: Excuse me.

MR. HANSON: There's more than one separation

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that occurred.

THE COURT: You can inquire on cross.

MR. HANSON: I can't object that something's vague?

THE COURT: No. That's a question.

MR. HANSON: Vague --

THE COURT: He wants to ask her what she believes her date of separation is. He can ask that question. Your objection is overruled. If you believe she answers the question and there's more than one day, on cross, you may ask that those questions. I actually want to know the date of filing, date of separation. I'm going to write it in my little column. I need to know that.

MR. HANSON: Am I allowed to make objections, Your Honor?

THE COURT: Yes. You can make objections, but that's not a proper objection.

A. I moved out of the house -- I don't have the exact date. It was early November. It was Veterans Day weekend. So I believe it was November 9th because all of that Friday, all of the services were closed for Veterans Day. Like Public Works utilities were closed. So I know it was Veterans weekend and I moved out. It was that Saturday that I -- the moving truck was there

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that morning.

BY MR. DAVIS:

Q. And that was what year, ma'am?

A. 2023. November of 2023. I think it's November 9th is Veterans Day. That day, but it was Saturday morning.

Q. And where did you move to?

A. To Land 'O Lakes. Do you want the address?

Q. Yes, ma'am.

A. 4112 Beeswax, B-E-E-S-W-A-X, Lane, Land 'O Lakes, Florida 34638. The neighborhood is Bexley.

Q. And what were the circumstances under which you moved out of the home with Mr. Hanson?

A. I -- prior to that time I had been asked to move out of the house and rent a location. I -- for at least six months and I did not want to rent. I saw it as the end of the marriage and I wanted to buy a location. And at one point during one of the arguments or fighting, he offered to pay me to move out right away and then we ultimately -- I don't know if it was the prior month or month and a half -- I would say prior two months, I, with the understanding there would be a payment, I was looking for a house. I initially looked through Zillow on my own and was trying to use a REALTOR® through Zillow and it wasn't working out. And

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then I broke down and called a REALTOR® that we both knew and we had several lookings. I canceled I think at least twice on her thinking well, maybe we'll work things out and at the last time I said we're not going to work things out and then I went through the process of purchasing a house, which was a whole other ordeal. And we entered into a separation agreement in October.

Q. Is it your position that Mr. Hanson kicked you out of the home?

MR. HANSON: It's leading.

A. Yes.

THE COURT: Hold on. There's an objection.

Okay. Sustained. You can rephrase, Mr. Davis.

BY MR. DAVIS:

Q. How would you characterize the circumstances that led up to you leaving the home?

A. I was asked to leave the house. I was in a position that I was told to leave the house.

Q. Did you feel like you could stay?

A. No. I was living -- prior to moving out, I was residing in the upstairs bedroom, in [redacted] room, and I was sleeping up there and taking showers and everything up there. And so no. I was asked to leave. I did not feel like I could stay and part of me leaving was an agreement or understanding that if I left, we

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could still salvage a friendship and we could still -- it would be the best time to leave is that time so we could stay friends because otherwise it was only going to go into more turmoil and at some point we were no longer going to be able to be friends and coparent was the way it was presented to me. And so I moved out.

Q. Presented to you by whom?

A. By Chris Hanson.

Q. Tell the Court what your home is like. Do the kids have their own bedrooms, sleeping arrangements, things like that?

A. Yes. The house I got is a -- there's a master bedroom. [redacted] has her own room, [redacted] has her own room, and they have their own bathroom. To be honest with you, I mean they use it. It's right next to their room, but they shower in my bathroom. It's just the three of us that live there. There's a bedroom downstairs that I converted into an office space and there's two desks for them as well as my desk. It was being used as the office space. Now the kitty litter is now being in there and we mostly do our work in our bedrooms and even I work in the living room now. And there is a bathroom downstairs that we use as well. The living room and dining room are pretty much open space and there's an island. So usually we eat at the island.

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When I moved, I only took three pieces of furniture. So I've been slowly adding furniture, but the girls' rooms are fully furnished. Although, they're asking for a chair in each room, which I haven't done for them and they were told to wait on that. And both rooms are painted. My sister painted the rooms. They're a pretty cool room.

Q. Children happy living at your home?

A. Yes.

MR. HANSON: I would object to it requires speculation.

THE COURT: Excuse me.

MR. HANSON: Requires speculation.

THE COURT: Overruled.

BY MR. DAVIS:

Q. Children have friends in your neighborhood?

A. Yes. They play. There's two young kids behind us directly. The little girl is six. The little boy is eight and the parents -- we have each other's numbers, but the sign is if the garage door's open, the children are there and we can play. And there's a little girl who's four, who's directly to the right of us, she was a COVID baby. So her parents are very excited to play with all the kids and they ride bikes up and down. The parents, we're positioned in a way if there's a car, we

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shout car and we get to the side of the road. It's a quieter. I'm more in the back. Like a side street. It's only if you live there are you going to pull onto that road and there is a 10-year-old two houses down and she comes over and plays as well with the group. And then we have a friend who lives in the neighborhood, who's in [redacted] class, and she's down the road. And I'll usually text them to come over. They came over one recent weekend and also rode bikes and chalk. I mean they ride bikes. Chalk. The neighbors behind us have a little pool and they do makeup and hair. That became a thing the other night. So yes.

Then there's playgrounds, but they just remodelled the playgrounds and we haven't gone to the playground yet. And there's a pool.

Q. It's already established that your kids attend [redacted] [redacted] What type of involvement do you have with the school?

A. So the school requires parenting hours. You have to -- it's eight hours a child or is it four hours a child? It's four hours a child. Eight hours a year up to two kids. So there's eight service hours in the first half and eight service hours we have to fulfill in the second half, having two children, each semester. So in the first half they usually have more opportunities

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to volunteer because you're not just supposed to buy stuff and send it to the school. If there's a party, there's a sign-up sheet. You have to sign up, but you do have to actually physically be involved for half of it. I usually -- this past year and the year before in the fall, I did the Christmas store where the kids get to come and buy something. I volunteer to do that. What else did I do? I was a mystery reader. I try to sign up. They fill up pretty quick. I try to sign up. And I'll also do that and I do set up and bring things in as well, as necessary, and then, you know, you walk in. You can park and you walk in as long as I get there by 7:50. That's the goal and you walk them to their class. You're allowed to do that.

And for pickup, I do pick them up. I don't do extended day anymore as much because of traffic. So I pick them up, but I used do, during Ms. Ivy's time, Pre-K 3 and Pre-K 4, they did more extended day.

Q. What time do you pick them up?

A. I leave the house at 2:00 and I get them by 2:40. Pickup time is between 2:30 and 3:00 in the car line. And I will have lunch with them at school. So I see teachers there at school for -- I try to go once a week. If they have -- if they're with their dad for three days during the workweek, I try to go once a week

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and bring them lunch. And I don't know if it counts, but one of the teachers lives out by us, next to us. So I mean her son is in [redacted] class. So occasionally we'll do play dates and include Julian and then and her younger daughter is a year younger than [redacted]

Q. Are you children involved in extracurricular activities?

A. [redacted] does dance class on Saturdays at 9:00 a.m. at Contempo and [redacted] does gymnastics at UGA, United Gymnastics Academy. She's been doing that a couple years now. She practices three times a week. It does kind of consume the schedule, but she'll have competitions. [redacted] has, right now, one day a week and recital in May.

MR. HANSON: Your Honor, I just want to object to the extent it's going far beyond the question asked and I have a lot of arguments I'd like to make.

THE COURT: Okay. Your objection is overruled. You can ask those questions on cross, sir.

MR. DAVIS: May I continue.

THE COURT: Yes, you may.

MR. DAVIS: Thank you.

BY MR. DAVIS:

Q. Was there a recent issue regarding a gymnastics

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banquet for [redacted]

A. Yes. [redacted] had -- so competition season went through and then she had -- the coach kind of sent out a message and said, you know, they were going to have a party or a banquet. All the girls were going to be dressed up and to come -- there was a reservation fee. I believe it was $20 per person, but it was just going to be for the girls on her competition of Level 3 who were going to attend. I saw the email. It was on Chris's time that the banquet was scheduled and I asked him if he was going to take her and he already mentioned that they were going -- she said she wanted to go. I said okay. I'll go ahead and I'll reserve it. So I reserved for three. For myself, for [redacted] and for Chris to attend the banquet. I took it as a celebration, as a group thing, and that was it. I paid and I reserved because that was -- the deadline was that Friday and I was at the gym. And it was that following Saturday and the coach on the chat, which both parents are on, asked me if I was correct in paying her the $60 and I said yeah. It's for Chris, myself, and for [redacted] and she said okay. And then Chris went into a private chat with me and said I wasn't allowed to go and that I couldn't go because it was on his time and I said okay. Because he said if I was going to go, then he

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wasn't going to take her. So I agreed to not go and I told coach I wasn't going to go. I privately told coach I wouldn't be there, but I didn't need a refund and I would attribute it towards a private lesson or something like that for gymnastics. I think she ultimately did refund me though the $20 and it was left at that. And I did not go to the banquet, but [redacted] and [redacted] did get to go.

Q. Did you -- and I represented you at that time?

A. I'm sorry. Say it again.

Q. I represented you at that time? I was the lawyer?

A. Yes. I sent you -- yes.

Q. And did you direct me to send an email to Mr. Hanson regarding this issue?

A. Yes. Well, I asked you what to do. You know, we couldn't do an emergency motion, obviously, but I said, you know, what do I do with this. I think is what I asked. I did ask for help.

Q. And I sent an email to Mr. Hanson. You've seen it?

A. Yes. I believe it was encouraging him to, you know, work through it and have me go. I don't remember exactly how it was worded.

Q. Okay. That's all right. Was there a problem

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with something called Medal Day?

A. Medal Day refers to -- prior to [redacted] doing dance last summer, she did gymnastics. I mean she did soccer. The girls did Soccer Shots. [redacted] wanted to do it, but it was during her time of practicing gymnastics, and she was aging out of Soccer Shots. For Soccer Shots what they do at the end is they do just Medal Day. All the kids get their medals. It's very exciting. They get their name called out and get to go up there. That was last summer. I think it would have been July if I recall. I think she was in the second session of summer. I don't remember if it was the second session or first session. And I told [redacted] it was during daddy's time. I told [redacted] I'll see you at soccer and that got out and then I received text messages saying I was not allowed to go because it was on his time and he would take pictures and send me the pictures.

But to be clear, I didn't want to go because I wanted to take a picture with her. I just wanted to go because I knew it was, you know, a special thing to get your trophy ceremony. I didn't go to the practices on the days he had them because I knew he didn't want that and I didn't go on those days out of respect it was his time. But on the ceremony days, it was a group thing

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and so I thought I'd be able to go, but he said he would not take her and they would go to Busch Gardens or do something different unless I guaranteed I would not be there. So I was not that.

MR. HANSON: I just need to move to strike to the extent there's commentary about texts she received and information she provided and.

THE COURT: I'm not following you.

MR. HANSON: The same thing that Mr. Davis objected to. If there's testimony about the communications back and forth, that's hearsay, right?

THE COURT: Well, you can't ask me a question.

MR. HANSON: I move to strike that it's hearsay.

THE COURT: What portion? She just told me a three-minute story.

MR. HANSON: Your Honor, you really jump on me pretty quick. So I try not to interrupt.

THE COURT: No. If she starts talking about something that you need to object to, you can say objection right away. I'm going to stop her. Right now she just finished telling me how you wouldn't allow her to go to practices and you wouldn't allow her to go to Medal Day or to the gymnastics banquet

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and if she said she was going to go, then you told her you were going to take the kids to Busch Gardens or not bring the kids to the banquet. What part of that's hearsay?

MR. HANSON: The part that's a conversation. It's not accurate.

THE COURT: If she's up here telling me complete untruths and lies, when you get to cross her, you get to clarify that. Right now she's telling me her version. I don't recall, unless it was at the beginning of the testimony, her talking about any communications that she had with the children. I do recall that she did talk about communications that she had with the coach that you guys were on the same chat. You could have technically done an objection at that point. If she starts to speak about hearsay, you need to interrupt right away and say objection so I can stop it.

So your objection is overruled at this juncture. If there was any testimony in there that stated anything that she reported to me about what the children told her, I will disregard that, but I don't recall that being said. All right. Mr. Davis, next question.

MR. DAVIS: Thank you.

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BY MR. DAVIS:

Q. Was there also an issue in the last 12 months regarding your ability to participate in or attend a competition in south Florida?

A. Yes. [redacted] has away competitions for gymnastics. The first one was Daytona. The kids, a lot of the parents were going. Daytona traffic is brutal trying to get over there, but they didn't compete until about 12:00 I want to say. So there was a matter of, you know, are we going to get a hotel room. And initially, my recollection was he and I discussed possibly sharing the expense of a hotel room and we would go up not necessarily driving up together, but we would be up there for this day. I looked up hotel rooms and I sent him information about the cost and he told me no. We shouldn't be going. We shouldn't be going there together. You shouldn't be staying and if you are going to stay, I'm not going to get a hotel room for the girls, but it was technically his weekend with the girls and -- or I don't recall if it was going to be he was going to have -- I don't recall. Whatever it was, I was not allowed to go. Obviously, I could get a hotel room, but if I was going to get a hotel room, I was forbidden from going to any of the team activities. If they did a team night dinner, I was not allowed to participate or

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if I was going to go, then he was going to find something else to do with the girls while they were in the Daytona. I was permitted -- he did agree I could go to the competition and then I would leave after the competition or, you know, I would disappear essentially. Obviously, if I wanted to get my own room I can get my own room. It ended up working out in the sense that morning [redacted] had dance class. So he asked me to take [redacted] So that morning I drove up with [redacted] to the competition and then after the competition, I dropped her back at the hotel with him and [redacted] at the pool.

Then the same thing happened with a separate competition. The next away competition essentially. They required a hotel room. They were in the south Florida for State. It was the Miami competition and initially, I don't think we knew the time, but it was going to fall on his time frame again. So there was the request or the demand that the same thing occur. You know, obviously, I can go to the competition, itself, but anything afterwards with the group team itself, I could not attend or go with the group or kids. And that timing actually fell a horrible time for competition. It was Sunday at 3:00 for her to compete and I think they got a hotel room. They got one the night before and I drove down that day, I think. I don't recall if

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they had a hotel room or not. I definitely drove down that day and there was really nothing to stay afterwards. It was really more the discussion prior to. If the people were going to be up there the day before or what, but I didn't do that. I don't know. I'll stop talking.

Q. Did Mr. Hanson explain to you why he wouldn't, to use your words, allow you to engage in the children's activities during away competitions?

MR. HANSON: Object that it's vague.

THE COURT: I'm sorry. Excuse me.

MR. HANSON: I object that it's vague.

THE COURT: Overruled.

A. My recollection, and I would have to go back through text messages or something along those lines, was that it was his time.

BY MR. DAVIS:

Q. No other reason?

A. No. Just that it was his time and I don't know if it's specific to the competitions, but I know it's something I've heard or I've been told is maybe one day we'll be on a page where we can be together at one of these things, but he could not at that given time.

Q. Let's go to the converse. Do you have any objection to Mr. Hanson attending any activities or

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events during your parenting time?

A. No. I've never asked him not to attend. I have no problem with him coming. There were soccer matches or soccer days where he had shown up and I was fine with it. If the kids forgot something, like a shoe or a book bag, we needed to exchange. I recall there was a couple soccer times where he came and watched. I had no problem with it. We stood there. We chatted. I'm thinking if there was another time. I have no problem with it. Even at the competition, when we're at the competitions together, I mean we'll chitchat about [redacted] a little bit. I think in one of them we each got a little heated. We went to separate parts. We didn't fight or anything. We talk. If [redacted] needs a snack, I'll give her a snack and we coparent with [redacted] when she's on the sidelines at the competitions.

Q. What do you do to facilitate a relationship between your children and Mr. Hanson?

MR. HANSON: Assumes facts not in evidence.

THE COURT: Overruled. Sir, he's going through the factors.

MR. HANSON: It just assumes that she does.

THE COURT: No. This is one of the questions he must ask her.

MR. HANSON: I understand. It assumes she does

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something to foster a relationship.

THE COURT: He just said what do you do. If she doesn't, she'll say she doesn't do anything.

MR. HANSON: But the question assumes the fact.

MR. DAVIS: I'll rephrase.

BY MR. DAVIS:

Q. Do you do anything to facilitate your children's relationship with Mr. Hanson?

A. I feel like I do.

Q. What do you do?

A. A couple of things. They have pictures of him in each of their rooms. Well, pictures of a group. It's pictures of all of us, but there is pictures of him up in their rooms. I also if -- if they come to me with a complaint or a problem or something they're upset about that involves daddy, I encourage them in the sense that I remind them that they have fun with daddy. I've seen them having fun with daddy and daddy might be going through something. Like maybe his [redacted] is bothering him. I encourage them to give him a little space if they're frustrated about something and I tell them that he's your only dad and you guys have fun and you are happy and you are the only one that can have a relationship with him in that capacity. And I have to -- I told them that. I say, you know, he's your only

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dad and you will have a unique relationship with him, whatever it is, but it's between you and him. I do encourage them also to talk to him if there's something they have a situation with, to just address it with him directly. I remind them that they do have fun. If they're having a bad struggling time with it, I know he has [redacted] and I know that's a factor for it. I say he might be in pain at that time and you need to give him his space.

Q. Are there times where Mr. Hanson asks you to change the timesharing schedule?

A. Yeah. I would say we both do that.

Q. Okay. When Mr. Hanson asks you to change the timesharing schedule, do you agree to it?

A. Yes.

Q. Have you ever refused to agree to change the schedule for an event or situation where he asks you?

A. No. If there's ever been a time he's asked me to change or hey, are you able to pick them up today, if I have something on my calendar that's already prescheduled, then I just can't, but that would be the only time I would say I haven't or I need more time for accommodation if something like that came up, but I can't recall a time like that coming up.

Q. Do you believe the children -- excuse me.

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Strike that.

Do you believe Mr. Hanson facilitates a relationship between the children and you?

MR. HANSON: Objection. It requires speculation and it's vague.

THE COURT: Overruled.

A. I am going to say no. I know of at least one instance that negative things were -- negative things were said about me, but, otherwise, I don't know if they talk about me. I don't know.

MR. HANSON: I'm just going to object that it's vague.

THE COURT: Overruled.

A. I was told I would not be allowed to talk to them anymore early on when we first separated because he accused me of spying on them. The girls were having a rough night and I was staying on the phone and one had asked me to stay on the phone and they left the phone. Nobody hung up the phone and they ran to the bathroom and they came back and he was furious I was still on the phone. But I didn't think I was spying on them, but I didn't hang up. I wasn't spying on them, but he said he would discontinue phone calls with me if I acted that way. I didn't know how to respond to that and there was another instance where I believe I was told he would

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limit the length of time. I believe that's in the text, but I don't recall that. That would have been early on in the separation. Normally, with the phone calls, we do phone calls at night. It's around 8:00. I try to have them call between 8:00 and 8:30 and so does he. After 8:30 or 8:40 I get a little panicked and I'll ask what's going on. Where are the girls? Are they calling? Where are you guys? I don't get any responses and I do get panicked by that. And then he will respond though and they will call. That's fine. I'm not looking to have an hour conversation with them especially when it's late at night. I just want to make sure they're some place safe with him and going to bed soon and say good night. I will usually try to call earlier around 7:00 if it's going to be a late call or I will text him and say hey, it's going to be -- I'm going to call you earlier today. I'm going to do something with them and we're going to be out between 8:00 or something so they can talk. So I usually try to do that.

BY MR. DAVIS:

Q. Do you have concerns about Mr. Hanson 's behaviors?

MR. HANSON: It's vague.

THE COURT: Overruled.

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MR. HANSON: I'm also going to object to what her qualifications are to have concerns.

A. I testified the other day in deposition that I did so. Yes.

BY MR. DAVIS:

Q. Judge Ayers was not there at the deposition.

A. Right. I'm saying I'm being consistent.

THE COURT: You don't need to respond to his objection. That's my job and Mr. Davis'.

THE WITNESS: Yes, Your Honor.

BY MR. DAVIS:

Q. What are your concerns about Mr. Hanson's behavior?

A. My concerns with him -- I'm sorry. It's a broad question and I'm trying to remember what I testified to specifically. My concerns overall are the reactions. I think he's very reactionary on things. I testified as well I think there's an anger management concern that I have. He reacts to things and he is extremely controlling when he does so and it's not always -- it's not in the best interest of the kids when he makes decisions in my opinion. He makes decisions based on him is the way I would classify that.

Q. Can you elaborate on that?

A. Sure. If there's a decision to be made, what

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he thinks is what goes. With his psyche or however he operates, there's only his perspective. There's only how he perceives something and if there's a disagreement with him on it, the girls don't have a say and he's -- he's their dad and they do try to please him, but there was an instance, which I had testified to, where, you know, this is a small thing. This is an example. Apparently [redacted] was at Skyway Park. They were at Skyway Park, the group of them. I was not there. And they were told that they were leaving and it was time to go. And [redacted] did an extra lap on the bike and in doing the extra lap on the bike, she was told --

MR. HANSON: I'm going to object. This is all hearsay from a seven-year-old.

THE COURT: Sustained.

A. Okay. I'm answering behaviors, his reaction to things, they are not normal and I thought when you live with somebody for so long, you don't know that it's not really a normal reaction. I guess with myself I can describe right before being kicked out, two months prior to leaving, I believe in August he got really angry over something I had done and he kicked me out of the hotel room. I had to rent -- I had to rent a car.

BY MR. DAVIS:

Q. Kicked you out of the hotel room where? Where

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were you?

A. I'm sorry. We were in Michigan. His family is in Michigan. We were in Michigan. It had been a couple days. We were up there and he was angry at me.

Q. What was he angry at you for?

A. We -- we were -- it was just us in the room that night and the girls were having a slumber party with their cousins and we had tacos. Some Mexican place in the downtown area. And after the Mexican place we had gone to his aunt and uncle's house, and leaving the aunt and uncle's house the road was very weaving. And I have very bad motion sickness and it was dark out and after I wasn't feeling very well. I told him I wasn't feeling well and he said okay. And we went up to the hotel room and I was working because at that time it was just me as the only attorney and Kathy was my assistant. And it was well after 5:00 and I had filings. I tried to get all the filings done by midnight and he was working too. It was like 11:00. I think it was after 11:00 and I had the computer on my lap. And he had come over to proposition to have sex and I farted. And he was furious and when off on how disgusting I was and I just continued to work. And he got very angry and I stayed in the room and we went to sleep. And he was still yelling at me about how disgusting I was and I

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didn't love him and I didn't want to have sex with him. For the record, we had sex the night before. So I wasn't trying to avoid sex and I wasn't feeling well. He said I was setting up the whole not feeling well thing to avoid him and he was furious with me.

And the next day he was still going off on me about how embarrassing I was. I said I don't know why you would have told anybody. I could have gone to the bathroom and freshened up or something. I could have -- and then he told me that -- he was supposed to come back with us. I had bought a ticket for the airplane to leave out of the Kentucky. He had driven up there. When he drove back, he had to drive back with the dog. He was driving back with the dog. We were all going to drive together back. I booked a flight from Kentucky to take the girls and we would fly back home so we could get home ahead of him, but he told me I needed to rent a car and I had to leave.

So the kids were still with their cousins and I just worked and I had a car rental and he drove me to rental facility with the kids. And we left and I had never driven across -- I had never driven across country or those areas. And so I was upset because he just kicked me out of the hotel room to drive with my girls across two states. And I threw up halfway in Indiana

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and we stopped at some grocery store to freshen up, but I threw up on the side of the road. And I continued driving and we got to Kentucky. We got to some hotel room that night at like 8:00 or 9:00 at night and then the girls and I got on the airplane and we came home.

Q. Do you need a minute?

A. No.

Q. Do you have concerns about Mr. Hanson' mental state?

A. Yeah. He has -- he has [redacted] It's really bad and I know that. And he's getting [redacted] and he's doing things, to my understanding, to help improve it, but when he gets the [redacted] I mean it's really bad his [redacted] He can't. He can't really function properly.

MR. HANSON: I'm just going to object to the lack of foundation, vague, hearsay, speculation. I don't know how she knows about my level of function. She hasn't sought any of my medical records.

THE COURT: Overruled.

A. I don't need to see the medical record.

THE COURT: You're not to respond to him.

A. I apologize. I apologize. The [redacted] is really bad and when you're in that kind of pain, it also impacts your mental state and he's had chronic

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[redacted]

MR. HANSON: Objection. What qualifications does Mrs. Hanson have about [redacted] and how it impacts mental state?

THE COURT: Overruled.

A. He has [redacted]

MR. HANSON: Objection. Where does she have that information? It's a diagnosis.

THE COURT: Mr. Davis, would you like to ask that question so we can continue on?

BY MR. DAVIS:

Q. Do you have any knowledge of Mr. Hanson's mental health?

A. Yes.

Q. How do you have that knowledge?

MR. HANSON: Objection. It's hearsay.

THE COURT: We don't know yet. She hasn't told us yet. How do you have that knowledge?

A. I know it directly from going to an appointment with him when we were trying to work things out. I had located a clinic because part of our arguments were he said I wasn't supportive enough and I had to find -- I don't know what the arguments were, but I found a clinic that did some sort of -- I don't know. I read Google reviews. It came recommended. It was a type of thing,

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[redacted] I think it was a [redacted] and I went with him to the initial appointment and he, you know, in going through it with the initial appointment to see if he was a candidate for it, was when he said he had [redacted] since college and [redacted] So that was the direct knowledge, I think, when I first learned of [redacted] but that was at the facility and that was shortly before -- I don't know specific month, but it would have been 2023.

BY MR. DAVIS:

Q. Have you seen the [redacted] affect Mr. Hanson?

MR. HANSON: Object. It requires speculation.

A. I'll be honest --

THE COURT: Hold on.

MR. HANSON: Lack of professional qualifications.

THE COURT: Mr. Davis.

MR. DAVIS: She's not a professional psychologist. I stipulate to that. I think as his spouse who lived with him, if he is [redacted] I respectfully believe she can tell the Court what she observed.

THE COURT: I'm going to sustain as to chronic.

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MR. DAVIS: Okay.

THE COURT: No one has established he has [redacted]

MR. DAVIS: I think the witness testified to it. That he told the mental health provider he had [redacted]

THE COURT: That's what she just said on that.

THE WITNESS: Uh-huh.

THE COURT: Okay. I apologize then. Go ahead.

BY MR. DAVIS:

Q. I'll rephrase. What have you observed in Mr. Hanson' behavior actions that relate to the [redacted] diagnosis that you know he has because he told you?

MR. HANSON: I object. It requires speculation and it's vague. And lack of any qualifications that would support a coherent opinion.

THE COURT: All right. He's already stipulated she doesn't have doctor qualification. She learned this at your doctor's appointment and now she's going to say what she's seen with her own eyes.

MR. HANSON: Your Honor, this was the same issue where I wanted the teacher to discuss about what she observed with the kids.

THE COURT: No. You asked her legal, medical

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questions, sir.

MR. HANSON: Okay.

THE COURT: Your objection is overruled.

A. I don't know what portion of his actions relates direct to a [redacted] state. To be honest with you, when he said it was when I first actually heard it, you know, my extent of [redacted] is what you see on the TV commercials and what they say your symptoms are and he always went to work. He always got up. He doesn't sleep. I don't know if [redacted] is a something. He really doesn't sleep much in my experience with him. I didn't find he slept a ton or he would have a different sleep pattern because he couldn't sleep the night before and that's [redacted]

MR. HANSON: I'm going to object to relevance and vague and speculation. I don't know what she's even talking about.

THE COURT: Your objection is overruled. She is testifying to what she has seen and it's one of the factors. It's G, the mental and physical health of the parents, that has to do with the best interest. She is telling me what she observed as you've been married with respect to your mental and physical health. Go ahead, Mr. Davis.

BY MR. DAVIS:

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Q. Do you have any other observations regarding the physical and mental health other than what you've testified to?

A. If I sit long enough and I think back on the marriage long enough, yeah.

Q. I'll move on.

THE COURT: I know, but I am really concerned myself with what's happened in the past year. Maybe the past two years for right now unless there's something major that needs to be discussed. You've been through a lot. How are we settling in and things going now?

THE WITNESS: I testified to what's going on now with the coparenting and reactionary things. Very angry. Half the stuff in the court filings, the file, I don't even understand why it's happening. The fixation on things with the behavior from a physical, mental, or just a personality aspect of it.

BY MR. DAVIS:

Q. Did Mr. Hanson say he wanted to hit you if you didn't move out of the house?

MR. HANSON: I object. It's slanderous and to answer the question -- I know that it won't get sustained. Go ahead.

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THE COURT: No. It's overruled, sir. It's because that's Factor No. M, whether there's been any domestic violence or other issues. So I have to listen to those, the answer to that factor.

A. There was a lot of yelling and fighting the last couple months before I moved out and at one point it was that he had so much rage against me that he felt like he could hit me and that things are escalating and not deescalating. I remember he always would -- he's very in control and bottle things up. I would dread when the girls went to bed because when they went to bed, he was going to come out and we would have to some other discussion of some sort. Those got very heated. At one point I remember he came out yelling at me and it scared him because the kids were sitting there on the bed because he would never yell in front of the kids. And he said this is only -- this is only escalating and he felt that it was going to get worse.

BY MR. DAVIS:

Q. Have you made any other observations about Mr. Hanson's anger management other than what you've already testified to?

MR. HANSON: Just object to it assumes facts not in evidence.

THE COURT: Overruled.

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A. I don't think I have anything additional compared to what I've already testified to. I think it all goes towards the bottling up and then the anger. That there's a lot of anger. I mean -- part of like right before the separation, I mean like little things would set him off. I was sitting at a stoplight. He had told [redacted] we would go see Paw Patrol. We were sitting at the stoplight. I was remember thinking geez, I wonder what an opening night looks like for a kid movie. Like do people go to that. It was our first movie, the first time going to the movie theater with the kids. I think it was our first movie we saw in the actual movie theater. I had Googled. I was looking at movie times. He sent me a message, hey, what are you doing? I was just looking at movie times for Paw Patrol. When are you looking for? I was looking at opening night because I was curious about it. That set him off with me. I got back. He was furious with me. He doesn't like crowded movie theaters. I know he doesn't like crowded movie theaters, but I have the audacity to look up movie times. I said I wasn't booking tickets. I wasn't booking tickets. I was just asking by curiosity and I didn't think I would have to not tell you that. I wasn't suggesting it to the girls. I didn't even say the dates to the girls. I didn't say

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anything to them. I just told him that and he went off on me about it. It was constant with that.

There was a football game. It was a series of threes. When we were fighting and we would try to work things out, three things, he said we were going to talk about these three things that made me angry or make me angry. That was one of them. There was another time when -- electrical cord. The Skyway -- [redacted] does football at the Skyway Park. That's over by where his house is. I signed us up. Hey, what if we volunteer to get the service hours? He said yeah. So he brought the dog and we were going to man the popcorn station. And they did have an electrical cord and I had suggested to the --

MR. HANSON: I'm just going to object that it's hearsay. It's nonresponsive. Irrelevant.

THE COURT: Overruled. She hasn't told me anything anybody else said. She's telling me what she told somebody else.

A. They need an electrical cord and we had -- I thought we had like a 50-foot long yellow electrical cord and I said oh, I think we have one. And he was standing there with Baio. That's the dog. I said don't we have one we can help them out with and he said no. I said oh, I thought we did and then I double checked. I

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said are you sure that we don't have one to help them out with and he said no. And then that became a discussion later on because how did I not read -- did I not see his face telling me not to say my electrical cord. I understood. I didn't realize he didn't want to loan the electrical cord. I didn't realize that was the issue because when I asked the second time as a follow up was when he was angry with me. And, you know, you don't have to yell to get someone to pay attention. You can give a look, like a stern look, and my concern with the kids right now is that they're observing him being different in public versus in private.

MR. HANSON: Objection. Speculation.

THE COURT: Overruled.

MR. HANSON: How does she --

THE COURT: This is her opinion.

MR. HANSON: She says they're seeing different things in public and private.

THE COURT: That's her opinion that she believes you're a different person in private than she sees you in public. You'll be able to tell me your opinion of yourself and your opinion of her. Right now she's telling me her opinion and her observations of your relationship.

MR. HANSON: So the rules of evidence don't

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apply to that.

THE COURT: You're going to get to do the same thing.

MR. HANSON: We'll see.

THE COURT: Overruled. And don't speak like that to me.

MR. HANSON: Your Honor, you have rolled your eyes at me at least three times.

THE COURT: I have not rolled my eyes, sir.

MR. HANSON: You have. I would swear to it on a Holy Bible right now.

THE COURT: You know what, sir. I will go get the camera footage and do it because I have not rolled my eyes at you.

MR. HANSON: Then please do, Your Honor. Please do request that for me.

THE COURT: Sir. Go ahead, Ms. Davis.

MR. DAVIS: Thank you.

BY MR. DAVIS:

Q. Is there a recent incident where you heard Mr. Hanson moaning during a call with your children?

A. Yes. That was with the [redacted] [redacted] that he was having.

Q. Tell the Court about that.

A. I could just hear him moaning in the background

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with the [redacted]

Q. You were on the call with your children?

A. It was on -- we talk on video chat on What's App and we were talking and I just know the sound and he had -- he was clearly in severe pain, which I don't -- I don't hold that against him. I don't fault him for that, but my concern is -- and now it's an even bigger concern. We're doing all this is that he won't just call me and say hey, this is really bad. I need you to take them today. I don't think the girls should have to see him like that. So they shouldn't have to see any worry or I don't know what they are. I don't know if they're numb to it. I don't know how they feel towards it. I don't think they should have to be subjected to that constantly. I know it's going to happen, but I don't think it has to be as frequent as it is happening.

Q. Do you have concerns regarding Mr. Hanson's recent staying with the children in a hotel multiple nights per week?

A. Yeah. Right now they're staying in a hotel because there was hurricane damage, which I understand and the house is being renovated. And initially, the first night, he's like hey, can you just take her and take her to gymnastics? The hotel prices were really expensive and things of that nature. I said yeah. And

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so I helped out and I stayed the night, but then he wanted -- he wanted make-up nights for when they stayed the night with me because I said why don't you pick them up and do things with them and they can just stay the night at my house.

Q. Why did you say that?

A. Well, because sleeping in your own bed is always nicer than sleeping in a hotel. I mean there's excitement with the hotel initially, but it wears. You know, half the excitement of a hotel is you're going to a hotel and go stay -- -

MR. HANSON: I'm just going to object. It's irrelevant.

THE COURT: Overruled.

A. So my concern -- and they're spending money on it. I don't know. They're staying at hotels and worry about them getting a good night's sleep. You sleep better than you do in the hotel. I don't know. That's my main concern.

BY MR. DAVIS:

Q. Have you seen the children after spending the night in the hotel and they appear tired?

A. My interpretation is I feel that they're tired. Yes.

Q. And you've tried to offer to accommodate

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Mr. Hanson and just basically have them sleep at your house overnight?

MR. HANSON: I object. It's leading.

THE COURT: Sustained.

MR. HANSON: Compound question as well.

BY MR. DAVIS:

Q. Have you offered to accommodate Mr. Hanson?

MR. HANSON: I just objected. It implies that I need to be accommodated.

THE COURT: Overruled.

A. I offered initially when I knew that was what was happening. I have not reoffered because my understanding is that if they inform him they don't sleep well, then there has to be a make-up night for daddy. So I don't push the topic.

BY MR. DAVIS:

Q. Do you have concerns about the way Mr. Hanson treats the children?

A. In public, no. They do play dates. I love to hear when they do play dates. They go out in the public and they play. I have no concerns over that. I do think he is different in private with them and --

MR. HANSON: I have to object. It requires speculation and no personal knowledge and assumes facts not in evidence.

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THE COURT: Overruled.

A. When I lived in the house, if he was agitated, if his back was bothering him, if he was stressed, if there was anything that was wrong and he couldn't be around the kids, he would ask me to take over for the kids or leave the house and take the kids and do something. I would take the kids frequently. We would go on walks. I would take them to store. Before going to the store, I would ask how he is and say do you want me to take the kids with me and he would be like take one of them. Sometimes take one. Sometimes I would take both. So when he's agitated or stressed is when I saw that that would occur.

Now, if he's agitated or stressed, I am not there to take them if they need to be taken for him to have a break to recuperate.

BY MR. DAVIS:

Q. Do you have concerns about Mr. Hanson telling the children that they're bad?

A. Yes. Yes. We went recently went to a tea party and they told -- they actually asked me more than once if they're bad girls and I tell them no. I said sometimes there's miscommunications and sometimes you don't act a certain way that maybe we expect you to act as adults, but you're not bad girls. I said who told

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you that and they said daddy said they were bad girls.

Q. Do you have a concern about Mr. Hanson telling the children that they're lying all the time?

MR. HANSON: Object. It assumes facts not in evidence.

A. Yes.

THE COURT: Mrs. --

THE WITNESS: Sorry.

THE COURT: I'm going to overrule based on that objection.

BY MR. DAVIS:

Q. Okay.

A. Yes.

Q. All right. What's your concern?

A. Well, everybody's lying according to Mr. Hanson unless it agrees with whatever he perceives. And excuse me. I don't want to say everybody, but if I -- if there's a different perspective -- and this is based off of our counseling with our marital counselor under the Gottman method. Towards the end of the counseling, when everything was pretty much coming to a head, he said he disagreed with the method and disagreed with the female. It's the husband and wife that lead it. He disagreed with the female's idea that there's another perspective and at that point when I knew I could never convince him

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otherwise. And with the girls, in my observations, if they were to disagree with him, and my understanding is, you know, it's his perspective.

Q. Are you concerned about the children's mental state?

A. Being separated going through a divorce, that's going to cause concerns for the kids. I understand that. And I honestly don't know if it's better to divorce when kids are older or kids are younger. But -- so I'm concerned with their mental state on that front. I also am concerned. So yes. I have concerns over their mental state.

Q. I'm going to show you or ask you to turn in the book to what's been marked as Tab 1 for identification. Do you recognize that document?

A. Yes. The proposed parenting plan.

Q. That's your proposed temporary parenting plan?

A. Yes.

Q. And you've completed that form yourself, correct?

A. Yes.

Q. And that reflects what you're asking the Court to do on a temporary basis, right?

MR. HANSON: When was this first served on me? I can't ask that question.

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THE COURT: Yes, but we have to conduct this hearing appropriately.

MR. HANSON: I thought no one was talking and I could say something.

THE COURT: Remember you are not to talk to Mr. Davis. You're to talk to me only, please. Do you have a question, Mr. Hanson?

MR. HANSON: When was I first provided with this document?

THE COURT: All right. Mr. Davis.

MR. DAVIS: Today.

MR. HANSON: Where is it at?

MR. DAVIS: Tab 1.

MR. HANSON: I'm going to object to hearing anything on it. It's clearly intent of trial by ambush.

THE COURT: Mr. Davis, response.

MR. DAVIS: It is her proposed parenting plan as to what she's asking the Court to do. I can ask her what she was asking the timesharing to be. Mr. Hanson deposed her on Wednesday for three hours and around 35 minutes. Could have been four hours and 35 minutes, but he wanted to break for an hour for lunch.

MR. HANSON: And I also had a back --

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THE COURT: No. You're not to speak to Mr. Davis. You're only to speak to me, please.

MR. HANSON: I also had a [redacted] where my doctor told me I had to be careful about sitting in one spot for the too long.

THE COURT: Okay. I don't even pay attention to that. You just received this parenting plan. Do you object to us looking at this parenting plan?

MR. HANSON: Yes.

THE COURT: Okay. It's objected to. So you have to ask Ms. Hanson the questions.

BY MR. DAVIS:

Q. Okay. Ms. Hanson, what timesharing schedule are you asking the Court to order with your children on a temporary basis?

A. I was proposing every other weekend with the parent. A weekend being from Friday after school or if there's no school, midday. Being we normally trade between 12:00 and 1:00. Usually around 12:30 currently. To actually Monday morning being the weekend and I would have the girls then Monday through Wednesday because she has gymnastics Monday, Wednesday, and Friday.

Q. You say she. Which child?

A. Excuse me. [redacted] has gymnastics Monday, Wednesday, and Friday. I was proposing Monday through

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Wednesday for that consistency and then they would be with their dad every Thursday and then the Friday would alternate based on whichever weekend with the alternating weekends. So he would have them Thursday and if it was his weekend, Thursday to now Monday morning. And if it was my weekend I would have them that Friday afternoon up through the following Thursday.

Q. Do you want to facilitate a relationship between the children and their father?

A. Yes. I'm not asking for supervised visits. I'm not asking to terminate any sort of parental rights. Right now we're swapping every three nights. So it's two and a half days. It's a lot, but based on my observations and discussions, it seems what I proposed I thought satisfied everything. There's more in it like the holiday schedule and alternating and also gymnastics competitions, I included to say an away competition -- I think I said we need to define over 20 miles, 30 miles, alternating between whichever parent having away expenses bearing 100 percent of the away expenses when it was their time.

Q. Why are you asking the Court to give you more than 50 percent of the time with the children and Mr. Hanson less than 50 percent of the time?

A. Because I'm concerned over their -- I'm

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concerned over their well-being and the stability -- it's not a physical well-being mind you. It's an emotional and mental well-being that I'm concerned of for them and being in his care for more than -- for 50 percent of the time. I think that they have a more stable environment and that they're free to be kids. I mean they have chores, responsibilities. They do their homework with me. We are structured, but I think they have more of a freedom, emotional freedom, to be themselves and be kids with me.

Q. Your motion for temporary relief, you asked for shared parental responsibility, but for you to have ultimate decision-making over education and academics and nonemergency healthcare; is that right?

A. Yes.

Q. Why?

A. Because if there's -- I try to make decisions I truly believe are in the best interest of the kids. I genuinely believe Mr. Hanson is shaded or tainted in his decision-making as to what he determines is better for him or based on whatever he has concluded to be the better thing to do essentially. So, for instance, I can tell right now my concern is he was thrown by Ms. Ivy's testimony, which I don't really know why. I testified in deposition on something similar to that. He was

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thrown by the testimony. My reaction to that is he is going to want to pull them from [redacted] if the kids -- if the teachers do something that he doesn't agree with or something goes down, he tends to have a drastic reaction to things. He considers himself to be a very reasonable person and that's how he views himself, but I don't think that's -- I genuinely do not believe that's the case.

Q. Along those lines --

A. I was just giving an example. It's a small example, but the kids had a birthday party that came up and it was to a salon. It was going to be -- it ended up being canceled. It was to a salon. [redacted] had gymnastics that day and it was his day for taking them. I said listen, there's this birthday party. It's exciting. It's at a salon. There's that or gymnastics. I knew deep down, I knew she wanted to do salon. He had her -- her decision to do gymnastics threw me and the explanation she gave, I knew right away was his explanation or what he had talked to her about to lean her a particular way because she didn't know what a salon was. And it was specific to [redacted] and [redacted] having her nails painted and she loves doing her hair. I knew that -- I didn't mind whichever way she wanted to do. Ultimately, the party got canceled. So it was fine and

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she made the right call going to gymnastics and that was fine. I ended up taking them to the salon about a -- at some point so they could see what one was and they got their hair done.

Q. Along the lines of parental responsibility, are you asking the Court that your communications with Mr. Hanson be by Family Wizard or Talking Parents?

A. I had asked. I personally filed a motion awhile ago. I understood it had been agreed to and I had received messages from Chris asking -- saying he had it, Family Wizard, and I went and I purchased it for a year and I got on it and I sent messages that way. And he informed me that he did not have it and it was not free and he was not going to sign up for it. And there was another one that was free and I said I already paid for something once. I don't want to do the wrong link again and he never went through and did it. But yes.

Q. We actually canceled a hearing because the Court was going to hear that motion and he agreed?

MR. HANSON: Objection. Leading.

A. I canceled --

THE COURT: Hold on. That's sustained.

BY MR. DAVIS:

Q. Did we cancel the hearing because of the agreement?

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A. My understanding of the agreement -- the hearing was canceled and there was no order signed.

Q. And then, thereafter, no agreement ever got signed?

MR. HANSON: I object to the best evidence rule. If there's documentation about this, then memory shouldn't be the testimony.

THE COURT: Overruled.

A. There was no agreement and there was no order ever signed.

BY MR. DAVIS:

Q. And why do you want to communicate with Mr. Hanson via Family Wizard or Talking Parents?

A. It's a lot easier than printing texts and attaching texts. I did that on one of the motions I filed. Also it keeps track. It also goes to the -- it goes to that private versus public persona. If there's somebody being monitored, I feel I am spoken to in a very different way. Even the last communications. I don't get the lengthy texts.

Q. Did you have an agreement with Mr. Hanson based on the separation agreement regarding the payment of children's expenses?

A. Yes.

Q. I'm going to ask you to turn to Tab 2 and tell

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the Court do you recognize that document.

A. It's the separation agreement.

Q. Is that a true and correct copy of the separation agreement?

A. It appears to be. Yes.

MR. DAVIS: At this time I offer into evidence what's been marked for identification as Petitioner's 2 and either as Petitioner's 1 or 2.

THE COURT: Mr. Hanson, any objection?

MR. HANSON: Yes. I think it was fraudulently induced. That there was duress. Let me -- those are the primary two.

THE COURT: That would be a defense. They're admitting it as a document you signed. I know you have a motion pending before the Court with respect to whether that should be vacated. As of right now -- you are the Petitioner. Petitioner's Exhibit 2 will be entered as Petitioner's Exhibit 1.

(PETITIONER EXHIBIT NO. 1 WAS RECEIVED IN EVIDENCE.)

BY MR. DAVIS:

Q. What was the agreement as it related to the children?

A. I'm looking for it. It's 50 percent.

Q. I know what it says. What was the agreement?

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A. I'm trying to find it. 50 percent he was going to pay for enrollment. We were paying 50 percent of the [redacted] enrollment as it became due, which is coming due next month, the half. So you pay half of that. Yeah. 50/50 payment of any child care expenses such as after-school activities and clubs. The extended day program at school.

Q. Do you also have an agreement with Mr. Hanson regarding his health insurance?

A. He is to pay me for half of the premium for the health insurance because he's on my health insurance policy.

Q. Initially did Mr. Hanson pay you for half the children's expenses?

A. Yes. I believe I received payments up through November of last year.

Q. Initially did Mr. Hanson pay you for his half of the health insurance?

A. Yes.

Q. Did Mr. Hanson stop paying for children's expenses?

A. Yes.

Q. When?

A. I believe my last -- I have an email I forwarded to him with all the receipts, which is for

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[redacted] speech, gymnastics, the dance, and any extras with that, and then the school and the medical expenses is another category. I have an email and I forwarded the email. And I can't remember what the last one was, but I think December. I think January. I think December expenses. He hasn't paid any since December. I don't know November or not as I sit here.

Q. How much money does Mr. Hanson owe you approximately?

MR. HANSON: Object. It requires speculation and legal conclusion.

THE COURT: Overruled.

A. I think I've asked for just over five grand currently, but I have not sent April's expenses for the gym expenses.

BY MR. DAVIS:

Q. Does that not include or include Mr. Hanson's health insurance?

A. I would include the health insurance expense.

Q. The 5,000 is total all in? Half of the children's expenses and the entirety of his health insurance?

A. Yes. His health insurance. I believe the premium includes half of one of the girls. I think it's one of the kids and his health insurance. I do a full

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amount of premium and cut it in half.

Q. Did Mr. Hanson tell you why he stopped paying?

A. No.

Q. How do you share the delegation of who takes them to the doctor appointments?

A. Whoever has them on that day. We rotate them three days. He took them to the dental appointment. You make them six months in advance and whatever date it falls on. Medical, if one of us feels that one is sick or, you know, wants to be checked out, you know, I took [redacted] recently because she had a fever that was increasing and a cough that was bad, but when we went that morning, she had no fever. I had just taken it an hour earlier. I don't know. I took her to that.

Then annual, I will try to call and make them. For [redacted] annual I made two appointments. One on his day. One on my day. If he wasn't available, I could take her, but I couldn't coordinate his schedule, but he said he was available and could take her. So I canceled my appointment. And if he pays for that co-pay, that becomes a credit on the expense, which I keep track of. For the dentist I think he had to pay $29 or something and that became a credit, which I captured on the expense email.

Q. I ask you to turn to Tab 3 in exhibit book,

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please. Do you recognize that document?

A. It's the Long Form Family Law Financial Affidavit.

Q. And that's your family law financial affidavit dated October 22, 2024?

A. Yes.

Q. And does that document accurately reflect your income, expenses, assets, and liabilities as of that time?

MR. HANSON: I'm going to object as vague.

A. Yes.

THE COURT: Mrs. Hanson.

THE WITNESS: Sorry.

THE COURT: I'm sorry. Mr. Hanson, what's your objection?

MR. HANSON: It's vague.

THE COURT: What is it, sir?

MR. HANSON: Is it everything? Is it the time period that is signed? Is it throughout the time period reflected?

THE COURT: Mr. Davis, can you repeat your question, please?

BY MR. DAVIS:

Q. Does your family law financial affidavit at Tab 3 accurately reflect your income, expenses, assets, and

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liabilities as of the date you signed it in October 22, 2024?

MR. HANSON: Same objection and then relevance.

THE COURT: All right. Overruled.

A. Yeah. Yes. I believe so. Yes.

MR. DAVIS: Your Honor, at this time, I'll offer into evidence what's been premarked as Petitioner's 3 as Petitioner's 2.

THE COURT: Any objection, Mr. Hanson?

MR. HANSON: I do object to it, Your Honor, because I think there's evidence that demonstrates it's inaccurate that I'll be reviewing in just a few minutes.

THE COURT: When you ask questions, you'll be able to rectify the record with respect that. So P3 will be Petitioner's Exhibit 2.

(PETITIONER EXHIBIT NO. 2 WAS RECEIVED IN EVIDENCE.)

MR. DAVIS: Thank you. Tender the witness.

THE COURT: At this time, I want to take a quick break. Mr. Hanson you looked like you needed one. A little stretching.

MR. HANSON: Your Honor, I'll just tell you now I've got a lot to cover. So I don't know if you expect to be out of here by 5:00, but I think it's

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pretty unlikely I'll be done asking questions by then.

THE COURT: All right. We'll see how we do, sir.

MR. HANSON: Okay.

THE COURT: It is 3:04. Actually it's 3:05 now. I'll see everyone back at 3:15.

MR. DAVIS: Thank you.

(Recess taken from 3:05 p.m. to 3:22 p.m.)

THE COURT: All right. Ms. Hanson, would you like to take the witness seat again, please?

MR. DAVIS: May I address the Court very briefly.

THE COURT: Yes, Mr. Davis.

MR. DAVIS: I just want to clarify as to whether we are or are not going outside the scope for judicial economy purposes.

THE COURT: Okay. I usually let them.

MR. DAVIS: That's fine.

THE COURT: Do you understand that? Technically, she's been called on direct and cross, but you can also call her on direct and he can cross. So I will let you go outside the scope of the questions Mr. Davis asked if you're okay with that so.

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MR. HANSON: Okay.

THE COURT: So you have full reign. So we don't have to call back and forth.

MR. HANSON: I have a video. I sent it to Mr. Davis and Ms. Hanson. It's a Ring video. I don't know if there's a way we can play it here or what the procedure would be on that.

THE COURT: Have you had a chance to look at that?

MR. DAVIS: I've seen it.

THE COURT: We don't have that capability. Do you have it on your computer?

MR. HANSON: I think I can play it on my computer.

THE COURT: What they'll do is bring it up here. Well, you both have watched it. They'll bring it up here so I can watch it. So yeah. We have the ability to do that if you bring your laptop up.

MR. HANSON: Right.

THE COURT: Can it be emailed?

MR. HANSON: I emailed it to Ms. Hayward a minute ago.

THE COURT: She's on vacation today.

MR. HANSON: Do you want me to send it to a

different address?

THE COURT: No. When do you want to play that?

MR. HANSON: Just some time during the cross.

THE COURT: Did you send it to Ms. Hayward or to the FamLawDivD?

MR. HANSON: It looks like -- I haven't hit send yet.

THE COURT: If you send it to FamLawDivD, I have access at my office and I can email it to myself.

MR. HANSON: I'm sending it there now. It's a link at the bottom of the page.

THE COURT: All right. So we'll do that in a little bit if you can get started without it. Will that work for you?

MR. HANSON: Yeah. Actually it might be good to move around in a little bit again too.

THE COURT: It's not my rule. It is bailiff's rule. If you need to get up, you need to let them know.

MR. HANSON: Okay. Do you want me to begin?

THE COURT: Oh, yes. I'm so sorry. Go ahead, Mr. Hanson.

CROSS-EXAMINATION

BY MR. HANSON:

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Q. Hi, Mrs. Hanson. We just did your deposition this week and we agreed I'd call you Sarah. Does that work for you today?

A. Yes.

Q. And I don't have any desire to make this any more difficult than it is. So if you need breaks or you want me to rephrase something, just let me know, but there are, obviously, difficult things I have to get into here. To your knowledge, has anyone accused me of doing anything dishonest or unethical related to any of this current litigation?

MR. DAVIS: Object to vague and calls for hearsay response.

THE COURT: All right. I'm going to -- I'm to sustain the objection and let you rephrase. Just make sure you ask the question.

MR. HANSON: I mean the answer is no. She doesn't have the information. It's just a lack of information. I'll rephrase.

THE COURT: Just remember we got to make sure we're not doing hearsay. That's the hardest thing we're doing in here.

BY MR. HANSON:

Q. In your opinion have I done anything dishonest or unethical with the issues related to this family law

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issues?

A. I think you've been a bit extremely in the family law litigation.

Q. Just answer my question. Have I done anything dishonest or unethical in relation to any of this family law litigation?

A. I don't know.

Q. And you're aware that I'm making very serious allegations about you and Mr. Davis doing things that are unethical and in violation of discovery rules and concealment? You're are you aware of that, right?

A. You're making those allegations. Yes.

Q. And if the allegations turn out to be true and there is dishonesty, concealment, and violation of ethical rules, do you think that should impact your time with the kids?

A. I don't think any of your allegations are true.

Q. If they turn out to be true, do you think that should impact your time with the kids?

MR. DAVIS: Objection. Relevance and calls for legal conclusion.

A. No.

BY MR. HANSON:

Q. Even if it turns out you're lying, no big deal? You should still get majority custody?

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A. Chris, I'm not lying.

Q. If it turns out you are, do you still think you should get majority custody?

MR. DAVIS: Asked and answered.

THE COURT: Yes. She says if she turns out to be a liar, she should still have more timesharing with the kids than you do.

BY MR. HANSON:

Q. Why is that?

A. Chris, I'm not lying about anything. I don't understand how I can answer that.

Q. Do you understand from my first filing in this matter back in May of 2024 I said the only issue in this case is getting answers to your account information in years before we divorced because there's a lot of evidence that suggested you had not been forthcoming with me?

MR. DAVIS: Object to relevance.

THE COURT: I'm sustaining that. We're not here talking about anything with respect to money today. This is all about the kids.

MR. HANSON: Your Honor, my argument is that none of this about the Guardian ad Litem is about the kids. It's part of a continuation of their efforts to push me off of this financial discovery.

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THE COURT: Okay. Then ask those questions.

MR. HANSON: I was getting there.

THE COURT: You already said we're going to run out of time. I don't want to hit any of the financial stuff today other than maybe a little bit of children expenses and child support. We're only here on the kids for the most part today. At least right now.

MR. HANSON: Right. But you understand my point, Your Honor, is everything they're doing is designed to push me away from discovery, that's relevant to whether a Guardian ad Litem should be appointed?

THE COURT: Then ask her that question.

MR. HANSON: Okay. I'm going to.

BY MR. HANSON:

Q. First, I just want to go to a document that I filed today and I sent everyone a courtesy copy; although, with Ms. Hayward not being here you maybe didn't get it.

THE COURT: I actually did check her email before I came to this hearing and I did print it.

MR. HANSON: And some of this will help with the order to show cause in terms of the email communications and maybe help me understand what

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I've done that is not ideal. If you go to page six of the document that I filed --

THE COURT: Could you identify that document so I make sure I have the right one in my folder.

MR. HANSON: Sure. Page 1 is a December 18, 2024 email at 2:17 p.m. from myself to Mr. Davis and Mrs. Hanson.

THE COURT: It was December, right?

MR. HANSON: Yes, ma'am.

THE COURT: Okay.

MR. HANSON: Then, if you go back to -- actually it's page 8. I want to go ahead and mark this communication, December 18th of 2024, and the back and forth.

THE COURT: Okay. I don't mind if you do this, Mr. Hanson, but right now we're dealing with the GAL, the psych exam, temp relief.

MR. HANSON: There's a pattern I need to explore.

THE COURT: You're free to do what you want. I just want to make sure we're all on the same page.

MR. DAVIS: I have a clean copy that has not been written on. Mr. Hanson can check it and make sure it's not been written on.

MR. HANSON: That's okay.

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MR. DAVIS: If the Court will give me one moment, I will bring it up on my email so I can follow along.

THE COURT: I read it, but he wanted to admit it. You wanted to admit this into evidence. Okay.

MR. HANSON: Yes.

THE COURT: Any objection, Mr. Davis?

MR. DAVIS: No objection, Your Honor.

THE COURT: So Mr. Hanson, this email correspondence that begins on December 18th. I'm going to guesstimate is probably close to 25 pages.

MR. HANSON: I think 18. It's like seven or eight emails back and forth.

THE COURT: And we'll just say the last email ends with an email from Kristin Kadaj, K-A-D-A-J, to Ms. Hodz, CCing Mr. Davis. "Please see attached letter from Mr." "From Attorney Davis", correct? It's the second to last page dated December 2nd.

MR. DAVIS: Yes, Your Honor.

MR. HANSON: Yes.

THE COURT: Perfect. We have the whole composite.

(RESPONDENT EXHIBIT NO. 1 WAS RECEIVED IN EVIDENCE.)

BY MR. HANSON:

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Q. So Mr. Davis' email, it's on page 8, the last line, the very top of page 8 is "I will not communicate with you by telephone. All communication will be in writing."

Sarah, do you see where that's communication from Mr. Davis to me?

A. Is this in this book?

Q. I don't have a clean copy. Do you have a computer where you can pull up, the HOVER stuff?

THE COURT: I can let her use mine and take it back.

MR. HANSON: There will be some more documents, Your Honor. I don't know that I have clean copies of them.

THE COURT: We'll work through it. Don't worry.

BY MR. HANSON:

Q. Do you see where I'm talking about where Mr. Davis' email says he's refusing to communicate with me by telephone and all communications will be in writing?

A. I'm not there yet, but I recall the email.

MR. DAVIS: I'll stipulate it says what it says.

BY MR. HANSON:

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Q. And are you aware I've sent several emails to Mr. Davis with the goal of trying to find common ground to move this forward?

MR. DAVIS: Object to relevance.

THE COURT: Overruled.

A. I understand you've sent -- I know you've sent several emails. I don't -- I mean I don't know what you define as the common ground.

BY MR. HANSON:

Q. So the email on -- strike that. I'll come back to that. If you could next please look at the email that is at Docket No. 70. It starts with a November 25, 2024 email from me to Mr. Davis.

A. Is it in this docket?

Q. I don't know if it's in packet.

THE COURT: When you say docket, do you mean Docket No. 70 on the actual docket?

MR. HANSON: Yes, Your Honor.

THE COURT: Okay. Thank you.

BY MR. HANSON:

Q. Sarah, please let me know when you have it and I'll start asking questions.

THE COURT: I don't believe she has the docket. Do you have it up on your computer over there?

A. I can get it on my computer, but every time I

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go on the docket everything's locked for me.

THE COURT: So on my Docket 70 it's a letter from you.

MR. HANSON: An email dated November 25th of 2024 to Mr. Davis and it looks like Vivian Hodz is on it.

THE COURT: If you give me one second, I'll print it for you. It will take me half a second.

MR. DAVIS: That's the Court's printing it.

THE COURT: I'm going to print it for you because I can look at it on the docket. My printer hasn't worked for five years. I'm so happy it's working. I'll print anything you want. They fixed it and it didn't work.

MR. DAVIS: I don't see DIN 70.

THE COURT: It's actually in the middle. 56, 57, 58, 70, 71, and then starts going backwards.

MR. DAVIS: That's why I couldn't find it. It's out of order.

MR. HANSON: Those are the documents I was filing overnight before the December 13th email.

THE COURT: I have it up on my screen and Ms. Hanson has a copy.

BY MR. HANSON:

Q. Ms. Hanson, I just want to go through the

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spirit of the letter. Do you see where in the second sentence there it says, "I considered reaching out for weeks and I'm finally doing it in hopes that I can get everyone on the same page to move this forward efficiently"?

A. Yes.

Q. Would you agree moving the divorce case forward efficiently would be in the best interest of the kids?

A. Sure.

Q. Would you say you're cooperating with that?

MR. DAVIS: Object to relevance.

THE COURT: Overruled.

A. Yeah.

BY MR. HANSON:

Q. In terms of financial discovery, you're aware that waiving objections to the same amount of records that you obtained from me would resolve a lot of these issues and move this case forward quickly? You're aware of that, right?

A. No.

Q. Assuming that I would compromise on various other things and negotiate with pretty much whatever you want, is that something we can talk about is you waiving objections so we can move this forward?

MR. DAVIS: Object to relevance.

THE COURT: I'm going to give him a little latitude. Overruled.

A. Chris, I've done multiple agreements with you.

THE COURT: I'm sorry. I missed that.

A. I said I've done multiple agreements with you where I believe everything that you tell me and it is never-ending so far. So I can't sit here and say that if you propose something to me, that all the sudden -- we already had an agreement. We had a separation agreement and you're moving to have it set aside. So be it. You can't sit here and tell me now if you get what you want -- originally it was eight years of financials. I understand you've gone down from eight to three when I look at this.

BY MR. HANSON:

Q. So just moving on with that first paragraph in the November 25th letter that says, "I'm sending this in the spirit of cooperation. I hope that you will review and consider it carefully with Mrs. Hanson. The singular issue that caused attorney involvement was discovery into Sarah's financial information. I'm confident you're aware of that; although, I'll state it plainly here just in case."

There anything about that paragraph that I just reviewed there that's anything less than focused and

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productive on trying to move the case forward?

MR. DAVIS: Object to speculation, calls for conclusion, and relevance.

THE COURT: Overruled.

A. Chris, that's one paragraph in one email. I have text messages from you before on the financial information attacking me for fraud and criminal and trying to bully me into finances that I don't even know why you're fixated on it.

BY MR. HANSON:

Q. I would encourage you to file all of those.

A. They are filed.

Q. The text messages.

A. They're attached to the motion for court-monitored communications.

MR. HANSON: Your Honor, my question was did that paragraph seem like it was a good-faith attempt at cooperation across the other side. Yes or no.

A. Base upon history of this, no.

BY MR. HANSON:

Q. Based upon just that paragraph.

A. Based upon my knowledge and history, no.

Q. Your Honor, I don't mean to drag this out, but it's a fairly simple question. Based on that paragraph would you agree it appears that my goal was to cooperate

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and move the case forward?

MR. DAVIS: Objection. Asked and answered twice.

THE COURT: Sustained.

MR. HANSON: I never got an answer to the question, Your Honor.

BY MR. HANSON:

Q. Next paragraph is I state I'm having health issues. I still want Vivian to remain in. Third paragraph down, "I am extremely concerned about the way things have progressed. It looks like you and Mrs. Hanson have the goal of prolonging this situation and avoiding critical discovery that I must have before any resolution is possible."

So you were aware, at least as of November 25th, that this discovery was something I needed before we could move the case forward, right?

A. Chris, I'm not copied on this email from what I can see and being stalwart on financials, that I understand have no bearing on litigation, I don't know how you can say that's going to progress the case forward.

Q. So the next sentence that I say is, "I have never looked to make the divorce contentious."

Do you have any evidence of anything that's

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occurred after, let's say, June 1st of 2024 where I did anything to increase the tension or specifically to try and get at you or for any reason other than just trying to get our family through this?

MR. DAVIS: Compound question. Speculation.

THE COURT: Did you understand the question or do you want him to break it up?

THE WITNESS: I mean I was going to respond.

THE COURT: The objection is overruled.

A. I mean, you forbade me -- after June is when you forbade me from going to the medal ceremony and the child -- and the banquet. So what are you asking? Yeah, Chris. It's been contentious.

BY MR. HANSON:

Q. Okay. We'll get into that. Other than the medal ceremonies -- so the gymnastics banquet and the medal ceremony, was about six months ago for one and a year and a half ago for the other.

A. I mean there's other things that have made this contentious. I have text messages. I can go through my phone with you.

Q. Sure. I'm asking after June 1st of 2024. Is there anything you have in terms of documents or evidence that suggests that I did anything to make the divorce proceeding more contentious?

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A. Have you read all of your pleadings and filings?

Q. Yes, I have. I'm very proud of them.

A. Okay. But those would be contentious.

Q. I think they're just the truth, but we'll get into that now. Okay. Current status and objectives, I say to Mr. Davis, "The most important thing for me will always be the best interest of the kids. I'm hoping this email provides an opportunity to reset and work cooperatively towards a resolution. We can each clearly state our position and have the time for calm reflection and consideration as to what is best for the children."

Is there any reason that you're aware that neither you or Mr. Davis responded to this email to attempt any sort of cooperation?

A. I'm not on this email service list. So I wouldn't have responded. I'm also represented by an attorney. So I would not have responded while I have an attorney. I also using -- I don't appreciate you constantly using the kids as props throughout the litigation to say that you have their best interest and you have to have financials in order to have their best interest. It doesn't make sense to me.

Q. Have you ever been hurt deeply by someone that you loved?

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A. Yeah.

Q. Have you ever felt like they used you and defrauded you as they were leaving?

A. I felt like I've been -- yeah.

Q. So perhaps you can understand I believe that you used me, lied to me, defrauded me, and there's a very simple way that I can get the records by getting less than what you made me obtain for you. Do you understand why that's an emotional issue for me?

MR. DAVIS: Objection. Relevance. It's not the best interest of the children.

THE COURT: Response, Mr. Hanson.

MR. HANSON: Well, Your Honor, it's become a conversation about whether Mrs. Hanson thinks that I'm doing something that's less than cooperative and I don't understand what it is if she believes that I am and it's not --

THE COURT: But maybe this is better suited for when we do the discoveries on the objections. I know you're still looking for those records. Right now, remember I'm trying to get us on a path. We're just talking about what am I supposed to do with these kiddos.

BY MR. HANSON:

Q. Okay. All right. So the third paragraph down

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under current status and objectives, and this is November 25th again. "My goal is to establish a long-term effective and cordial coparenting relationship as efficiently humanly as possible."

Did you or Mr. Davis as far as you know ever get back to me about anything associated with a parenting plan before I received this binder just before we started today?

A. I don't know what Mr. Davis' communications have been with you and right now you know I'm seeking additional time. So I don't really know what you're asking me.

Q. I'm sorry. The question is why not work with me when I'm opening the door and having conversations and find common ground and stop having conflict?

A. Chris, we're going through a divorce and I've never been able to find common ground with you. If I could, I probably wouldn't be going through a divorce with you. The common ground for us was the divorce. That was filed as joint petition after you reviewed it, after you sent me a text message giving me my permission to file for divorce. So we were cooperating for the divorce. I don't -- I mean, when you write an email now and say hey, let's cooperate, to me, it's been a really long time of me trying to cooperate.

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Q. I want to get into the timeline of discovery issues to date because this is where the pattern really starts and becomes very, very concerning. There was a stipulation reached on May 14th of 2024 for me to produce not only my mandatory disclosures, but also the interrogatory responses that you had sent over to me and you were supposed to produce your mandatory disclosures by June 28th, right?

A. I don't know.

MR. DAVIS: Object to relevance. It's the best interest of the children.

MR. HANSON: Your Honor, it's because their only goal is to hide the discovery and I can prove that.

THE COURT: But right now we're talking about the Guardian ad Litem motion, the psych eval, and the temporary relief that she wants more timesharing with the children.

MR. HANSON: That's right. And the timing of when she filed the amended petition for more time with the children was five days after my house got flooded by Hurricane Helene and 22 days before the hearing on the only issue in the case, which is the discovery. So it's a pattern where they began to file documents and then December 13th there's a

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barrage of motions over my objections. So it's all part of the same process of delay, obstruct, burden, and harass, and I don't understand why I wouldn't be allowed the chance to document the --

THE COURT: I'm not saying you can't. Let me ask a quick question. Was there -- in this marital settlement agreement, did you guys reach a finality to the parenting plan?

MR. HANSON: No.

THE COURT: Right. That's still up for grabs. You're saying the only issue in this case prior to all of this happening was the fact you want these financial documents. This whole case hasn't been resolved.

MR. HANSON: I should have said dispute.

THE COURT: All right. If that's how you want to spend your time, I'm stating that I need to get a resolution as to the kids today and I'm going to rule on the Guardian ad Litem motion and the psych eval and the temporary relief.

MR. HANSON: Without even getting the deposition from this week?

THE COURT: Why would I need the deposition?

MR. HANSON: Because it's critical to the issues. The deposition focused on several issues

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that are important to this.

THE COURT: The only thing you can use a deposition for is to impeach her. Anything you got out of the deposition you have to get out in front of me today. I'm not going to read the deposition transcript. Depositions are only taken so you can get an idea of what she's going to say to me to be prepared and if she comes in and lies. I'm not going to read the deposition. Whatever you got out of there, you need to let me know today.

MR. HANSON: I'll keep working.

A. Okay.

BY MR. HANSON:

Q. You're aware there was an agreement to produce documents by June 28th?

THE COURT: What agreement?

MR. HANSON: A stipulation reached between my first counsel and Mr. Davis to exchange documents by June 28th.

THE COURT: That's fine. Sorry. I was on the MSA because you just finished talking about that. Right now we're talking about some email.

MR. HANSON: It's still Docket No. 70. It's on page 2 now and Docket No. 70.

THE COURT: We're talking about in the old days

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a gentleman's agreement on how the financials are going to be exchanged between the parties.

MR. DAVIS: What day did he say that happened?

THE COURT: May 14th.

MR. DAVIS: I wasn't her lawyer.

THE COURT: You weren't her lawyer?

MR. DAVIS: I was not.

MR. HANSON: There may be a typo.

THE COURT: At some sort, are you aware, Ms. Hanson -- did you have a lawyer at that time, Mr. Hanson?

MR. HANSON: I did.

THE COURT: And did she always have a lawyer?

MR. HANSON: She had a lawyer soon after I had one. She had filed those documents. A motion.

THE COURT: All right. The discovery what you're just talking about that everyone agreed we were going to exchange by this date in June, did both of you have lawyers?

MR. HANSON: Yes. It was Mr. Davis and Ms. Samarkos at the time.

THE COURT: Mr. Davis didn't think he was the lawyer at the time.

MR. DAVIS: I was not on as of May 14th. I won't hide the ball. He asked us yesterday and

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Sarah didn't know. According to this retainer agreement, I was retained on May 29th, '24.

THE COURT: All right. We need to see the agreement.

MR. HANSON: I'll locate it here.

THE COURT: I thought it was No. 70.

MR. HANSON: That is. That's a description of it, but it might not be the original agreement. I know where it is. It's in one of the documents that Gracie had filed about the agreement. So I'll track it down.

THE COURT: So at some point your lawyer and Mrs. Hanson's lawyer decided here's going to be the deadlines on exchanging discovery.

MR. HANSON: Yes. On June 28, 2024.

THE COURT: June 28th of 2024. Then what's the question on that, sir?

BY MR. HANSON:

Q. So you were aware through my filing in response to your motion to compel payments that my only concern was the discovery, right, or do you want to open that up and look at it together?

MR. DAVIS: Object to relevance.

THE COURT: Well, if he wants to spend his time that way, I'm just going to note it for his

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discovery.

MR. DAVIS: Okay.

THE COURT: You're kind of going off the track that we all set up, Mr. Hanson.

MR. HANSON: I'm trying to argue my case the best way that I can and I've been trying to elicit testimony about this. The Court's interrupted me about this June 28th issue. Mr. Davis has interrupted me about it. I just want to be able to get it out.

THE COURT: Mr. Hanson, I believe Mr. Davis would have an issue right now that I was assisting and helping you. Since you said I interrupted you, I am no longer to assist you. I have been trying to give you deference being a pro se litigant. I was just helping you out just then to help you get what you wanted to, but you're now accusing me of interrupting you. So I'll just sit here and call balls and strikes.

MR. HANSON: Okay.

BY MR. HANSON:

Q. So is it your testimony that you had no idea there was an agreement for you to produce your mandatory disclosure documents by June 28, 2024?

A. I am not aware of a June 28 deadline on the

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documents as I sit here today.

Q. It's going to take me a minute.

A. Can I comment on it?

THE COURT: No.

BY MR. HANSON:

Q. It was June 13th of 2014 when the agreement was reached and we can go to Docket No. 36, paragraph 5. And Mrs. Hanson it just says on June 13th of 2024 counsel for the petitioner spoke with the paralegal for counsel for the respondent.

MR. DAVIS: What document is this?

MR. HANSON: Docket No. 36.

MR. DAVIS: Thank you.

MR. HANSON: Paragraph 5 on June 13, 2024, "Counsel for the petitioner spoke with the paralegal for counsel for respondent and requested an extension until June 28th of 2024 to provide the petitioner's certificate of compliance and mandatory disclosure, corresponding documents, and an updated financial affidavit."

So did you work at obtaining any financial documents for Mr. Davis any time before June 28th of 2024?

A. Yes.

Q. Why would you have done that if there wasn't an

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agreement that you were aware of where you needed to?

MR. DAVIS: I'm going to object to relevance and res judicata. There was a motion to compel. It was granted. The Court ordered fees. Reserved on reasonableness and amount. It's res judicata and irrelevant as to the children.

THE COURT: Response, Mr. Hanson.

MR. HANSON: Your Honor, I think I have a right to know why my family was put through four months of delay when Mr. Davis promised. A stipulation is a promise, right? Doesn't that give him some responsibilities under the professional rules to comply or make reasonable efforts to comply or does he just get to say he's going to do anything, keep me waiting, keep our family under stress, and play these games. Is that okay in your courtroom?

THE COURT: I'm not answering your question, sir.

MR. HANSON: That's what he's doing and so far it's been okay. So far there's been no consequences for him and I'm going to keep fighting it or talking about it until some venue takes it seriously because these things are true and it's a crime that families are treated like this in the state of Florida. That my kids are going through this. The dishonesty I'm

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having to witness here. The time it's going to take me to correct the record and all this could have been solved a year ago. Just let me -- give less records than she had, but my family suffered for a year because of this. So it's going to take some time, but I'm going to keep fighting it.

THE COURT: All right. Your objection has been sustained. It's adjudicated. It's res judicata until we reargue that motion.

MR. HANSON: I'm not arguing a motion. I'm saying these are facts.

BY MR. HANSON:

Q. What was done between June 28th of 2024, the deadline for you producing mandatory disclosures, the only thing I cared about in the case, financial records from you, and October 22nd of 2024, the first date that you or Mr. Davis produced anything?

MR. DAVIS: Object to relevance and again, it's res judicata.

THE COURT: Sustained.

MR. HANSON: Your Honor, my position is they intentionally delayed.

THE COURT: I already ruled on it and gave you fees. I concurred with you.

MR. HANSON: Right. So you agreed they

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intentionally delayed and did nothing.

THE COURT: I stand by whatever order I entered.

MR. HANSON: I need to go forward in that I think there's probably communications between them where they talk about trickling documents out too.

THE COURT: That would be attorney-client privilege that you're not entitled to, sir.

MR. HANSON: Even if it's for a crime and furtherance of a crime. The crime fraud exception.

THE COURT: Next question, sir. You've already won this motion. I already found in your favor and I granted you fees.

BY MR. HANSON:

Q. Would you agree that as a litigant and you're concerned about your children being dragged through it, it would be frustrating if the opposing attorney agreed to do something and did nothing, didn't ask for an extension, didn't provide an explanation, didn't produce any records for four months? Would you find that frustrating, Sarah?

MR. DAVIS: Object to compound and relevance.

THE COURT: Sustained.

BY MR. HANSON:

Q. Would you be frustrated if the opposing

attorney promised to do something that would have helped your family move forward with problems, but then didn't do it?

MR. DAVIS: Objection. Relevance and assumes facts not in evidence.

MR. HANSON: It's a hypothetical.

THE COURT: I'll allow it as a hypothetical.

A. When you say family -- I mean, Chris, I don't even know what the question was.

BY MR. HANSON:

Q. It's a very simple question.

A. You keep saying frustrating with delaying your family.

Q. Because I can't go back to work. I have to make sure this is right. I know I can't coparent with you with no trust and the trust doesn't exist. This is going to go as far as it has to go. I'm at the Court's mercy to some degree. There's the writ that's up there.

A. Chris, nothing, nothing was happening. Okay.

Q. Do you understand the question arises?

A. No.

Q. Why not just waive the objection and just get all this behind us?

A. Because of your constant bullying, Chris. Because we have a separation agreement. Because

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everything's been put in place. Because you're constantly controlling this narrative of some sort. The fact you would accuse me of even hiding money. Where I am hiding money? The fact of the matter is you were saving so much money you seemed shocked that I wasn't. You were able to save that much money because I was spending money on everything else. I don't know how you don't make that correlation and you're a lawyer.

Q. Right.

A. We're lawyers. We know that there's already hey, I need an extension. You asked why I was gathering paperwork without knowing about the agreement. Because we were already past the Court's deadline on the mandatory disclosures. We were already past it. I filed a joint motion for extension of time that was not ruled on. At our very first hearing, whatever they call it, the CMC, the Court did the venue and everything. We said we're late on the mandatory disclosures and Judge Ayers said I don't get involved. If the parties can get along, you guys can get along and resolve it yourself. I got a barrage of text messages from you after that hearing saying you want eight years of financials, which is the entire marriage. That's what you wanted. I rushed and did a quick financial affidavit and you said you're going to get an attorney and it's going to be

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easy for you to get these records. And I don't know why, but I panicked. Whatever it was. They got their notice of appearance in. I emailed Gracie and said I'm going to supplement the affidavit and then I really didn't know what to do and I was lost and I went and got a lawyer.

Q. Let's talk about what you told Gracie before you made the decision to get a lawyer.

A. Okay.

Q. I believe it is at docket --

THE COURT: Just so the record is clear, so I'm following --

THE WITNESS: Sure.

THE COURT: It sounds like, from Mr. Hanson's perspective, you were going to start gathering the document and complying with mandatory disclosures.

THE WITNESS: Right.

THE COURT: And you possibly obtained legal advice that stated because of the agreements that the two of you had signed, you needed to slow down.

THE WITNESS: Not quite.

THE COURT: But don't tell me what you talked about with your lawyers because Mr. Hanson said many times, and it seems right to me, at some juncture you were prepared to start gathering the mandatory

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disclosure documents.

THE WITNESS: I was gathering mandatory disclosure documents before Mr. Davis was involved because I was looking at the affidavit, but in reading the rules and reading everything, I'll be honest with you, I didn't fully grasp what in the world had to be gathered. After -- without discussing it with Mr. Davis -- I guess I can say this and I'm --

MR. DAVIS: She can waive privilege if she wants to.

THE COURT: We're not waiving.

A. It's not a privilege thing, but I was able to acquire a form. Okay. That actually in layperson's terms.

THE COURT: We know what form that is.

THE WITNESS: They give to people to say this is what it is. Okay. I was gathering those documents in June.

THE COURT: Okay. So before you got the certificate of mandatory disclosure list. Is that the list you're talking about? That's the form you get from the Florida Supreme Court that tells you what you need to gather.

THE WITNESS: An easy form you can read. I

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don't know if it's that form or came from his office modified. If it's something he created and modified.

THE COURT: Okay. So you're saying you were going off a more complicated form and somehow you got a form you could understand. So you started focusing on that simple form.

THE WITNESS: Yes. Yes.

THE COURT: And on that simple form, were those documents were disclosed?

THE WITNESS: Yes.

THE COURT: Okay.

MR. HANSON: I'm so confused about where you're getting this information that you're telling her about when she's testifying.

THE COURT: I'm not telling her. I'm --

THE WITNESS: She's not telling me anything.

THE COURT: She's stating she received a list from her lawyer that was the required mandatory disclosures and she has turned those documents over to you. So what documents do you believe that you're missing? Because you're giving me the impression she didn't turn over any mandatory disclosure.

MR. HANSON: No. Not until October 22nd of

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2024.

THE COURT: We're here today. What do you believe, as we sit here today, what are you missing?

MR. HANSON: For one, I'm missing she has not complied with the certificate of compliance. They were sneaky with how they were drafted just like they were sneaky in a lot of ways. They refused to fix it and that's what's up on the Second DCA now is the ruling is essentially you don't have to comply with the law.

THE COURT: Okay. So you're stating you complied with what you believe were the mandatory disclosures. You're saying she hasn't, but then there's also a ruling I made that limited extra disclosures due to the MSA, correct?

MR. HANSON: If it's --

THE COURT: Is that a third group?

MR. HANSON: No, Your Honor. I'm not trying to make the point that you think I am. If I could just keep --

THE COURT: No, sir. I'm trying to figure out what we're missing. She stating she complied with mandatory disclosure. You said they were sneaky about it and didn't really do it. I know we've had hearings where you've asked for additional documents

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and I've said they don't have to disclose it because the marital settlement agreements are in full effect and force. Now you filed to set it aside. That gives us a little bit different arena. When we're talking about documents missing, are we talking about their sneakiness on the original mandatory disclosure or the documents that I won't permit you to have?

MR. HANSON: That's -- both of it is part of it. Your Honor, if you look closely --

MR. DAVIS: I know what he's talking about.

THE COURT: Yeah.

MR. HANSON: Let me finish my sentence.

THE COURT: What?

MR. DAVIS: At the hearing on the motion to compel that I think was in February. I have to check, but I believe it was. The Court asked Mr. Hanson several times what documents do you contend haven't been provided and he couldn't identify any. What happened, as we moved on, is he contended that the certificate, itself, the language in the certificate -- and the Court might recall.

THE COURT: I remember that specifically.

MR. DAVIS: Right. Because it was unusual and after the fact, I went and looked at the Florida

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Supreme Court and it still has the old language.

THE COURT: It doesn't matter. I asked you to modify it and you did.

MR. DAVIS: I did. Yes, ma'am.

THE COURT: Stop. Stop. Stop.

MR. HANSON: The contempt and order that you excused him from.

THE COURT: Stop, Mr. Davis. Why did you just mock at the Court?

MR. HANSON: Because he's excused. He was in blatant violation of a court order for months. I begged you for help.

THE COURT: How did you beg me for help?

MR. HANSON: Let's go through the docket.

THE COURT: Sir, I don't -- Mr. Hanson, when something's filed, I don't get a copy of it. I don't know about a filing until you reach out to my judicial assistant and say I filed this. I need a hearing please. That's why I set this whole afternoon up for you. So stop. You came in and you said that he did not use the exact language that he was supposed to in the certificate of discovery. I concurred with you. I made him amend it. Stop. He amended it and added the language you were requesting that you believe is the legal language.

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I'm not going to discuss whether it is or not. I made a ruling in your favor and he modified it.

MR. HANSON: Your Honor, you let him off the hook.

THE COURT: What was I supposed to do to him? Put him in jail?

MR. HANSON: Maybe. Maybe.

THE COURT: I'm going to put him in jail because he grabbed a verbiage from the old statute instead of using the new statute.

MR. HANSON: Maybe. If you refuse to look at the pattern, that might be what you see. If you look at the pattern, you see a much more serious abuse that's impacting the children. I hope the Court would care about it.

THE COURT: I do care about the children. Right now Mr. Davis has made one clerical mistake.

MR. HANSON: We'll keep going then.

THE COURT: I still don't have an answer to my question. What documents do you still think she's hiding the ball on?

MR. HANSON: Your Honor, if I knew that, I would know what she's hiding.

THE COURT: What are you asking for?

MR. HANSON: She has not sworn to the proper --

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what's required in the certificate of compliance.

THE COURT: They did an amended. What's wrong with that?

MR. HANSON: What's wrong with that is, first of all, you went out of your way to excuse him from despicable behavior. That's No. 1.

THE COURT: For the record, I don't find that despicable behavior whatsoever.

MR. HANSON: What did he do for those four months?

THE COURT: He didn't believe he was in violation. He grabbed the language, which is pretty much the same language. It gets the same effect. He grabbed the language out of the old statute, which happens a lot. Once you brought his attention to it, he put in the new language and he's still standing by it. So right now he's a liar if that's wrong.

MR. HANSON: He's a liar. That's flat out wrong.

THE COURT: They've now sworn to the new language. So if they're not telling the truth, now is where I can put them in trouble. But for making a clerical mistake by using not the exact language, which is still a sworn statement, I am not going to

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hold them to doing anything wrong.

MR. HANSON: Your Honor, you're missing the point in entirely. They didn't produce anything between June 28th, the day they promised they would, where I was sitting at the computer at 5:00 p.m. waiting for it. They didn't produce anything despite emails to Mr. Davis. Phone calls to Mr. Davis.

THE COURT: What did I do about that?

MR. HANSON: There's no response.

THE COURT: What did I do about that, Mr. Hanson? I granted your motion and gave you attorney fees.

MR. HANSON: And then refused to let me talk about it as part of larger pattern of obstruction.

THE COURT: Go. Go. I'm still not clear what you're looking for. I'm trying to help you. What are you looking for?

MR. HANSON: What I'm looking for is for them to come clean to get as much discovery as they've gotten from me. Let's go through where our respective positions are and how fair it seems in terms of postmarital agreement.

MR. DAVIS: May I address the Court.

MR. HANSON: Isn't it my --

MR. DAVIS: I'm concerned Mr. Hanson is trying to kick the can down the road once again and not address the children's issues because we are not hearing much about the children on these questions. That's my concern is he's trying to run out the clock and just keep drag, stall, delay the Court from deciding the motions that are scheduled.

THE COURT: Okay. So I said when we started this hearing I had a roadmap. I had five bullets. The first bullet we were going to start with was wife's motion for the GAL, psych exam, and vocational evaluation along with mom's temporary relief for the timesharing. Mr. Hanson had said he would like to utilize his time in the manner he deems fit. I'm allowing him to do that. I will be making a ruling today on the GAL motion, the psych eval. I don't think I've been given enough information as we sit here today on the vocational eval and the temporary relief with regards to the children.

MR. HANSON: Your Honor, just on the Guardian ad Litem, I would rather than you and Mr. Davis and Mrs. Hanson forcing the kids to see a stranger and draw their attention to the divorce, when they're two years past it, we've been living in different

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houses for a year and a half. The kids are doing good. Mrs. Hanson is going to drag them into the this corrupt system. That is an outrage. I would rather go to mediation. If that means I have to agree Ms. Hanson gets more custody so I my kids don't get thrown into a system for profit, corrupted by Mr. Davis, then I would rather not have the kids as much, but I do not want my kids to get thrown in a system with a stranger who is part of a corrupt -- it is a for-profit system. I know what IMEs do. I know what happens in litigation.

THE COURT: In what?

MR. HANSON: CMEs. IMEs. Doctors are paid to corrupt the truth to advance the narrative just like Mr. Davis has been doing all along here.

THE COURT: Aren't you one of us?

MR. HANSON: I am, but I tell the truth, Your Honor. That's why I've been able to make the allegations I have and nobody has anything bad to say about it because they're true. You might not like them, but they're true. So I'll continue.

THE COURT: Are you okay? You shouldn't be laughing, ma'am?

THE WITNESS: I'm not laughing. I'm bottling up my response.

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THE COURT: Keep it to yourself.

MR. HANSON: Your Honor, I would really like you to see Mrs. Hanson's deposition transcript. It is one essentially long answer of how much she hates me and how horrible I am with very few specific examples.

MR. DAVIS: I respectfully object. That's mischaracterization. He could have ordered daily.

MR. HANSON: I don't interrupt when you're talking. Your Honor, I'm in the middle of talking.

THE COURT: He has a right to object.

MR. HANSON: He did not.

THE COURT: No. He should have said objection. Right now I'm going to let Mr. Hanson continue. Mr. Hanson, I just need to let you know that I can't read the deposition transcript. It has to be presented in front of me today unless you filed it and asked for me to read it. I mean, Mr. Davis, do you have any objection to me reading the deposition transcript?

MR. DAVIS: It hasn't been ordered. Well, it hasn't been ordered daily.

MR. HANSON: I can't afford $2,000 right now.

THE COURT: I understand that.

MR. HANSON: So I couldn't get it for today.

THE COURT: I just want to let you know the deposition is so you can prepare to come in and present it to me. The only time I've ever read a transcript is when someone debates something and I need to make a decision on what was really said. It would be unusual for you to submit the deposition transcript to me and have me read it to make a ruling here because that doesn't give Mr. Davis the right to argue or question or anything that I might read from that transcript and create in my own mind.

It's for us to be able to do this and ask questions. So I could read the deposition transcript and get a wholly different picture of what really happened there. That's a preparation. That's a discovery tool for you and the only other way you can use it is if she were to come in and lie and you wanted to impeach her. The questions you asked in the depo needs to be asked today in front of me.

MR. HANSON: I know there's a lot. I'm not trying to go slow. I do think there's some reluctance to answer the question asked in a manner to disrupt the flow of it. If Your Honor can assist at all with keeping things responsive, I would appreciate it.

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BY MR. HANSON:

Q. All right. Going back to Document 70. So we talked about how nothing was done from June 28th until October 22nd, six days before the hearing. That's when Mr. Davis requested we cancel the October 28th hearing. With the Chase subpoenas, of course they objected to those as well, even though they didn't have to actually gather all the documents. I had to gather the documents of many financial institutions. They're obstructing there as well.

MR. DAVIS: Object. He's not asking questions of the witness.

THE COURT: Okay.

MR. HANSON: You're right.

THE COURT: Take a breather and get back to your questions, sir.

BY MR. HANSON:

Q. The Chase subpoena and allowing that to go forward would streamline things, right? I would agree to some requests you and Mr. Davis wanted. Is that something you're open to doing?

MR. DAVIS: Objection. Relevance.

THE COURT: Overruled.

A. Your Chase subpoena addresses the Law Office of Sarah Hanson. It has nothing to do with Chase.

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BY MR. HANSON:

Q. Your own bank accounts are at Chase.

A. If I recall you're asking for eight years.

Q. What about three years? That's what I got for you. Three years of bank accounts.

A. Chris, you've created a mountain out of a molehill and there's no basis for it. Me refusing to produce something does not mean that something negative happened. I have no concerns whatsoever if I'm ordered to produce it.

Q. Do you believe me when I say I want to get out of this system and move on with my life?

A. No.

Q. You think I'm enjoying this?

A. Yes.

Q. What makes you think I'm enjoying this?

A. It's occupying time since you walked away from your practice and I think you actually like practicing more than you actually complain about it.

Q. Walk away from it?

A. Chris, you had an entire client base.

MR. HANSON: Your Honor, I don't know whether to -- it's like the stuff I have to cover is constantly expanding. I'm not moving forward. I've got to now defend myself.

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THE COURT: Well, Mr. Hanson, don't forget you're asking her questions right now. Then it's going to be time for you to be called to the stand. I'm not going to have you ask yourself questions. That would be kind of silly. At that time you can tell me everything you want and Mr. Davis will also be able to ask you questions. You'll have your opportunity to tell me your side of the story, sir.

BY MR. HANSON:

Q. Are you aware that my initial attorney filed motions back in August to try to get compliance with the mandatory disclosures and a ruling on the Chase subpoena?

MR. DAVIS: Object to relevance. It's best interest of the children and res judicata.

THE COURT: Mr. Davis, I've already stated he's got 45 more minutes. I'm going to let him spend his time the way he wants to, but I will be making a ruling as to the children by the end of the hearing. So overruled.

A. I'm aware that motions were filed. I do not recall the exact time frame.

BY MR. HANSON:

Q. Were you continuing to compile any records for Mr. Davis after June 28th or were all of your records

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compiled before June 28th?

A. I don't recall. I think I might be getting into attorney-client privilege though.

THE COURT: That's your lawyer's job.

A. Okay. I don't recall compiling records. I recall possibly asking what else I needed to provide and whether I had everything.

BY MR. HANSON:

Q. So you think you provided everything before June 28th?

A. I don't know that I provided everything because I was -- I think I was looking for maybe guidance on what else was needed.

Q. Do you know of any reason why Mr. Davis would have delayed in producing documents that you had already provided to him that he had stipulated to produce by a certain date?

MR. DAVIS: Objection to speculation.

THE COURT: Overruled.

A. Well, Mr. Davis went through a firm change. I recall that. I recall he went through some staffing situations. It does occur with lawyers and life happens. It's not unheard of for things to be delayed or for additional extensions to be needed.

BY MR. HANSON:

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Q. And you understand why it just sort of happens sometimes that there's delays is a concerning answer for me when it relates to the one and only issue I care about in the litigation? It doesn't seem like a coincidence to me. Can you understand why that would be?

A. No.

Q. So moving on to the delays Mr. Davis caused in getting a hearing set. So my attorneys had filed the motions by August. They were trying to coordinate it with Mr. Davis. Mr. Davis was out of office for two weeks. He had suggested that he filed an out-of-office reminder with the Court, which he did not do. Are you aware of all that?

A. No. I'm aware vacations happen. I don't know what was going on.

Q. Are you aware Mr. Davis office failed to comply to allow us to have a September hearing on the discovery issues?

A. I mean, no, and I don't know -- in defense of my lawyer, I don't know what the judge's hearing times were open to. I have no idea.

Q. I believe it was September 7th that we had, but I'll file something on it. So next I want to talk about the strategic trickle of documents, which in 18 years of

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practice I never seen before. Do you know what I'm talking about with his strategic trickle of documents?

A. No, I don't.

Q. All right. So look at page 2 -- I'm sorry. Page 3 of Docket ID No. 70. The first paragraph under appearance is, "The first attempt you made, stipulated due date of June 28th, was nearly four months after the date to which you agreed three days before the hearing you produced the minimal records. It was interesting the Ascensus records only went back to June 1, 2024."

Why would you produce the Ascensus records only going back to a couple months?

A. Okay. Well, Ascensus is an old retirement 401(k) account with my employer from Conroy. They don't have records except the records -- I think it's quarterly that they actually have accounting statements. And I produced these off of whatever their time blockage was of it. I recall Ms. Hodz asked for additional that was beyond the scope of mandatory disclosure and I agreed to give that.

Q. Is that in writing?

A. Ms. Hodz' request, she didn't request it from me. I received a request from the paralegal, Kristin K. She advised that there could be a hearing. So I didn't have to give it up if I recall correctly, but that it's

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a common request made because those types of records do not have frequent statements, but what I produced is per what I understood was to be produced.

Q. Do you understand that we talked about the delay that you all caused from the June 2024 stipulated date of production to October of 2024 when you actually did something to comply with the stipulation?

A. No. I'm sorry. I don't understand your question.

Q. So do you have anything to suggest that Mr. Davis ever produced any documents for the mandatory disclosure before October 25th of 2024?

A. I do not know. I don't have any. No. I was not working at his office. I do not know.

Q. So then we go to the hearing three days after he produces the records, October 28th. We get the order and some time later y'all provided Ascensus records going back to October 1st of 2023. Now we already made the decision to end our marriage by October 1st of 2023, right?

A. Yeah. Yeah.

Q. Do you understand why it would cause me some concerns that even at the second try you're only producing records back to when the marriage is already over?

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A. Chris, there's $10,000 in a retirement account.

Q. Ma'am, just answer my question, please. Do you understand why under these circumstances, where I waited four months to get anything, I couldn't even get hey, this is why it's delayed or hey, we need an extension or hey, we're working on it. So there was those four months of nothing where this was a big deal to me. Then just three days before the hearing we get, you know, a month or two of records and then just records back to after the marriage was over? Do you understand why that would raise some red flags for me?

A. No.

Q. And then are you aware that Mr. Davis canceled at least two conferences with my attorney, Vivian, that pushed back any determination or cooperation on this discovery?

MR. DAVIS: Objection. Assumes facts not in evidence.

THE COURT: Overruled.

A. No.

BY MR. HANSON:

Q. Is it your understanding that Mr. Davis was very responsive and cooperative with Ms. Hodz?

A. I have no idea. I understand there was a conference.

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Q. A total -- was there a total of one conference with Ms. Hodz?

A. I do not know.

Q. What was the significance of filing the motion for primary custody on October 2nd of 2024?

A. What document?

Q. You filed the amended petition seeking primary custody on October 2nd, 2024. What's the significance of that timing for that filing?

A. I'm pretty sure I asked for it earlier. So I don't know why October. There's no significance in the timing.

Q. When are you pretty sure you asked for it?

A. I asked for it prior to that.

Q. Was Mr. Davis aware that my home had just been flooded by Helene four or five days before that when you gave permission to file the amended petition for dissolution?

MR. DAVIS: Object to foundation as to what I was aware of.

THE COURT: Overruled. If you can answer it. If you know of Mr. --

A. Well, I gave the authorization to file it earlier and the timing of the filing of it, I mean I have no idea what his conclusions would have been

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regarding Helene.
BY MR. HANSON:
Q. So you signed the postmarital agreement agreeing to 50/50 custody, right?
A. Correct.
Q. Were there several occasions in the years leading up to 2024 where we talked about divorce where we consistently agreed it could only be 50/50 custody?
A. I mean, I agree I agreed to 50/50 custody. I don't know leading up to the divorce. I mean I'm not clear on the conversations as to what you're saying prior to that.
Q. I'll ask it this way. Is there any time before October 2, 2024, when you ever told me or suggested to me that you thought that anything other than 50/50 would be in the kids' best interest?
A. Chris, I can't communicate with you on trying to get you to do more than 50/50 or less than 50/50. We're in litigation and we're going through a divorce.
Q. Sarah, my point is for years -- five years maybe we struggled with possibly divorcing. Every conversation we ever had was if we do it, it's got to be 50/50, right?
A. I disagree for five years we were contemplating divorcing. I have disagree with the statement.

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Q. You don't think as of the assault in the car on the way back from Bonefish that we were thinking of divorce?

A. There was no assault.

Q. We'll get into that in just a couple minutes.

A. We had a second child.

Q. You were pregnant with her eight months, which is why we didn't get divorced.

A. Oh, thank you for clarifying that for me.

Q. Right. So continuing on. Are you able to tell me a date or a month for when it changed in your mind that 50/50 custody isn't good anymore; that I need to go for primary custody?

A. It was ongoing since we had separated and you had snapped at me multiple times through phone messages and my removal -- myself being removed from the house and thinking back on everything and the fact I was the one interceding on behalf of the kids. I had clarification that it should not be 50/50 and that was why. That was a big push for me in retaining a lawyer was because of my current concerns over the 50/50 and that was also why, as I previously testified in open court, I was trying to figure out how to go about that process and that's why I served the interrogatories.

Q. You were trying to figure out how to go about

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the process of getting primary custody?

A. Of going beyond the law change requiring 50/50. Of trying to go around the 50/50 because I did not think that was in the best interest of two little girls.

Q. When did that first start that you thought it was appropriate to go around the 50/50 to get more custody?

A. It started shortly after the girls -- I think it was around Thanksgiving. November of 2023 when you were -- when you went off on me about being on the phone and threatening to cut off my communication with them.

Q. Let's just go ahead and get into that real quickly. So what I was upset about was that the phone was sitting in the girls' bedroom for about 45 minutes?

A. Uh-uh.

Q. And I was talking with the girls and then all the sudden I realized you were still on the phone listening to us. You don't think that would be a little frustrating?

A. That's not --

Q. That's exactly happened.

A. Chris.

Q. What do you think happened?

A. Okay. I was talking to them. They were very distraught and crying. They went to brush their teeth.

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They said they would be back after brushing their teeth. You were not having a conversation with them. I did not sit on the phone for 45 minutes. The entire phone call, from when I was first trying to talk to them to when the phone call ended, may have been 45 minutes, but I was not sitting for there for 45 minutes listening to you talk to the girls. They went over to brush their teeth and they said they would be back and not to go anywhere. You didn't take the phone. I thought you heard them say that. There was no eavesdropping. It was relatively quick. Why would I have hung up on them? I didn't say good-bye. They said please wait. I would have thought you were there monitoring it.

Q. Have the kids had any sort of an injury under my care in the last five years?

A. I don't know what you mean by injury. I mean, they fall and scrape their legs with both of us. They get sick with both of us.

Q. I don't know that they've fallen and scraped their leg. I can't remember the last time that happened. They're active kids. My point is has there been any sort of concern about a lack of attention for them or getting into stuff they shouldn't?

A. No. I never alleged that.

Q. Are you aware what took place between the

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conversation that Mr. Davis had with Ms. Hodz?

A. No. Well, let me clarify. I wasn't there for the conversation, but Mr. Davis did convey to me at some point that they had talked. Yeah. Or I had conveyed to him what I -- what my concerns were at the time, I believe. Yeah, I had.

Q. And when I spoke with Ms. Hodz, after she finally spoke with Mr. Davis, her view of the case and whether she could help me completely changed even though the law and the facts didn't change. Do you have any idea why that might be?

MR. DAVIS: Objection as to speculation. There's hearsay involved.

THE COURT: I'm going to overrule because the only way she said she knows anything is from her conversation with you and that's protected with attorney-client privilege. So do you have any idea other than your conversation with Mr. Davis?

THE WITNESS: No. Actually I don't remember the question. It was about Ms. Hodz's conversation or your understanding of it?

BY MR. HANSON:

Q. Are you aware why Ms. Hodz's view of the case completely changed even though the facts and the law didn't change after a conversation with Mr. Davis?

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A. I'm not.

Q. Are you aware there was a similar result when Mr. Davis spoke with Gracie Samarkos on the case when her view was initially it's no problem, I'll get you the stuff to I don't think they'll cooperate with anything?

A. I would only speculate and I don't know why she would have said we wouldn't cooperate with anything.

Q. You cooperated with any discovery?

A. Yeah.

Q. Other than your view of the mandatory disclosures, what discovery have you cooperated with for me?

A. The discovery that's appropriate to answer, we answered. You're allowed to object under the rules for objections. You're asking for --

Q. Going on with that Document ID No. 70, we're now on page 7. You'll see there's a section "Delays in making decision on future employment."

Do you see where I'm referring to?

A. I do.

Q. Do you understand why I put you and Mr. Davis on notice that I have these concerns about the litigation; yet, I also have the goal of going back to work?

A. No.

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Q. I'm sorry. I may have asked you this. Do you think I want to go back to work?

A. I understand you are -- I don't know. What work? Going back to be a lawyer? A defense lawyer for workers' comp? What?

Q. Honestly, I don't know exactly yet, but I'm anxious to do something and get out of this. Did I ever tell you going through an ugly litigation process with our divorce was my biggest fear with the whole situation?

A. Hence, we did a separation agreement.

Q. Did you disclose any of your assets to me?

A. Yes.

Q. Do you have any evidence?

A. Chris, you filed all of our tax records. You received all of my documents for tax purposes in order for the tax returns to be filed. I never saw yours. You also sat and went through my Chase account.

Q. Your testimony is I had free access to your checking account where you had your checks deposited?

A. No. My testimony was there was a time where you sat there and you had me type in my password and you sat on the bed and you went through statements and the Chase account with me upstairs.

Q. You were right there next to me?

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A. I was next to you for a period and I went upstairs to the space.

Q. Is that the most free access to your marital assets and the income paid to you that you ever provided to me and your testimony was leaving a computer downstairs for a bit and then coming back? Is that the most you were open with me about those marital assets?

A. That's the most and only time you insisted and requested it. Otherwise, you had them annually.

Q. Did my income go down from 2021 until 2024 fairly consistently?

A. You told me your income went down when you took the change from Rissman and Constangy.

Q. I lost accounts receivable. Obviously, I lost money. Right there was less money. Do you understand that about law?

MR. DAVIS: Objection. Speculation.

THE COURT: Sustained.

BY MR. HANSON:

Q. Is it really your testimony I wasn't asking you to contribute more those years where my income suffered and I wasn't liking practicing law?

A. Chris, I don't know how many times I tell you. I was paying. I wasn't saving money.

Q. That's not my question. That's not my

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question. My question is this. Is it your testimony there was only one time I asked for information about your income, where those marital assets were going, or were there other occasions where I tried to get you to contribute more to expenses the last four or five years?

A. Okay. You never classified income for either of us as marital assets. So that's something that's new. So I can honestly say you never said hey where's the marital assets. So you've never done that.

Q. I'm not classifying it. I'm saying it is marital asset. Your income during the marriage is a marital asset. Do you understand that?

A. Duly noted on your side as well. I don't know what to tell you on that.

Q. Of course.

A. When you insisted on seeing my accounts and I logged in and you had the computer and I was crying because I couldn't believe you were doing that. You went through it and that was it. You received all of my year-end documents and everything that you have to do taxes on, I gave to you consistently every year.

Q. You couldn't believe that I was concerned about where hundreds of thousands of dollars of marital income went?

A. What hundreds of thousands of dollars of

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marital income? What do you think I was earning?

Q. What were you making in 2024?

A. 2024, that's last year. I think I estimated in my deposition. I estimated around 170. I haven't done my taxes yet.

Q. What about the year before that?

A. I had taken on the new job. So it's whatever is in my financial disclosures.

Q. Averaging over a hundred grand a year in the marriage?

A. I didn't average over a hundred grand a year in the marriage.

Q. Close to it.

A. You averaged over 300.

THE COURT: You have to let her answer the question. She didn't answer the question.

A. I'm sorry. I don't know what the question was. I was getting defensive, Your Honor.

THE COURT: All right. So slow down.

BY MR. HANSON:

Q. Is it fair to say you earned several hundred thousand dollars of income that was deposited into an account that I never had access to during our marriage?

MR. DAVIS: Object to relevance.

THE COURT: It's his 15 minutes. Overruled.

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A. I had an annual income.
BY MR. HANSON:
Q. Yes or no. I don't know why this is taking time.
A. No. I don't understand. You're saying -- I never had hundreds of thousands of dollars within one year.
Q. I didn't ask one year. I said during the time we were married.
THE COURT: Stop. You have to let her answer. You guys are getting into a debate.
MR. HANSON: Your Honor, I'm just trying to hustle because I know I have limited time.
THE COURT: This is going to be continued. I'm just making a decision on the other issues. So ask your question and just slow down and let her answer it. I know you guys are getting a little frustrated with each other.
A. This money obsession, Chris, you were earning over $300,000.
BY MR. HANSON:
Q. When?
A. You were complaining to me you had to pay the mortgage on a house you had me sign a prenup to. That's what I heard throughout our marriage for years. I

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absolutely agreed I would not pay a dime to the house. I would stipulate to that.

Q. Can we try to move forward with the payroll stuff quickly? I really don't like going through this tit for tat stuff, but I need to do that.

A. What payroll stuff?

Q. Back in 2019, when [redacted] was born, you decreased your federal withholdings at work, right?

A. No.

Q. Did you ever decrease your federal withholdings at work? At any job?

A. Okay. I never intentionally decreased any of my federal withholdings at any job I went to. In 2019, when I was pregnant. I took a new job while pregnant and I filled out the initial form. That's what I did with that. You're telling me in -- okay. I'm jumping ahead. That's my answer.

Q. It happened multiple years in a row. 2019 was the first year when [redacted] was born and I understood there was going to be a tax burden from your payroll records. I had no problem paying it in 2020. 2021 came around, April 2021, and you still had the lowest possible federal withholdings. So you were getting more money into that account that I never had access to and then, at the end of the year, you said I don't have any

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money. You're going to have to pay for these payroll taxes that I couldn't pay. Did you do that three years in a row including in April of 2023?

A. Not that I'm aware of.

Q. Maybe though, right?

A. I don't know. 2023 -- I did not intentionally take the lowest -- Chris, I'm not a tax person. I'm not a tax expert. I fill out the paperwork. I don't know how to fill it out. We had accountants that you picked and used. You know, you were using the accountant that Rissman had you using.

Q. You think they chose your withholdings?

A. They never told me change the withholdings. It's in the email I read you at the deposition. It had in there, where I even put in there, I understand it is correct now. Because 2022, I started a new job in 2022. So my 2022 annual was still under Conroy and 2023 was when you lost a gasket over the taxes. And that was because of -- it was because Costangy had made you pay taxes on two bonuses and you were furious about that.

Q. It was the same day. It was April 1st I learned that my employer was making me double pay taxes and you had $18,000 in tax debt that you said you didn't have the money to repay. That was a rough day. Do you recall that was the day where I thought I would get back

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on with income? The change of jobs?

A. No. Chris, you didn't discuss those sort of important things with me in my opinion and you told me I owed you $50,000. Not 18,000. The $18,000 to me is new.

Q. That was in 2023. That was what your liability was? 2022, 2021, 2020 was probably fifty grand.

A. So you're adding up all three years.

Q. Sarah, is it unreasonable for me when you don't pay a dime towards the taxes, taxes and insurance, that you should pay your own payroll taxes? Is that unreasonable?

A. Are you not aware --

Q. Just answer my question. Just answer my question.

THE COURT: Stop. She hasn't said anything yet. What's the answer to that question? He wants you to answer that question.

A. It was whether or not his expectation was unreasonable. Yes. Yes.

BY MR. HANSON:

Q. You agree your expectation was unreasonable?

A. No. Your expectation was unreasonable.

Q. My expectation was because I paid for the mortgage, taxes, and insurance and funded a joint

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account, that you never put a dime into, but still paid money out of, under all those circumstances it was still unreasonable that I hoped you could cover your own payroll taxes?

A. Yes. Because you don't -- you are not factoring in the actual rest of the expenses of the entire household. The joint account never had more than what two or $3,000 in it. You're not factoring in all the other expenses that I was paying including the remodel of your movie theater room.

Q. What year was that?

A. 2023 and the mold.

Q. Did you pay any remodels upstairs?

A. No. That was you.

Q. Did you pay for any remodel of the outside?

A. Yes. I paid for plumbers to come out and diagnose why the plumbing was leaking into that lower living room. I paid for all the awnings to be redone. All the patio furniture. I paid for the pool. The pool was always directly on my account any repairs to the pool was always directly to my account. The fencing I put around the pool, I paid for.

Q. I'm going to ask you to produce all the documents.

A. I'm testifying today. That was all back when

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we first moved into the house and then some.

Q. More recently, did you contribute to anything at the house?

A. I remodelled your movie theater room. I did the mold that was in there and the drywall that had to be done in two different spots. You did the down payment.

Q. I'm going to move to strike as hearsay and ask you to produce the documents.

A. I'm --

THE COURT: Stop. You asked her a question and she's answering it. You can't just move to strike and ask for the documents. Her answer will stay as it is. You are still free to ask her for documents in an appropriate form.

BY MR. HANSON:

Q. All right. Looking back at Docket No. 70 on page 5 at the bottom, "Possible ways to proceed with the discovery issues subject to my attorney's advice." My correspondence to Mr. Davis, I guess you weren't copied on this. "It will always remain my goal to bring this to the most efficient close possible."

Just read through the rest of that paragraph. Is there anything you find offensive about that?

A. I don't know which paragraph specifically.

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What page?

Q. Page 5 under "Possible ways to proceed with the discovery issues."

A. The first paragraph or last one?

Q. The first paragraph. "It will always remain my goal."

A. Chris, you sent me multiple emails throughout our marriage, throughout our counseling, that were at length that say the exact same thing about your goal is this and all we have to do is this. This goes all back to your personality and mentality that you cannot get off of something once you're on it. I understand you view this as a reasonable paragraph. As somebody who has received multiple, multiple emails that I didn't even know how to respond to, they were forwarded to the marriage counselor. I mean, so no. I understand how another person would read this, but this goes to that public persona. I understand how you view this, but no. For me, this is not -- this is just posturing on your part for something of whatever's going on in your head of whatever you want to pursue.

Q. Is there anything that's in this email that I suggested that's not true?

A. Chris, just the topic headings. You have this entire theory of a strategic delay between me and

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Mr. Davis. There was no strategic delay of anything. There's nothing strategic about any of this. All I'm asking for the Court to determine is the child -- our children's living arrangements. I'm not --

Q. Are you aware when Mr. Davis had the conversation with Ms. Hodz he raised timesharing over the holiday schedule?

A. I am aware that you and I had a rather large dispute over the holiday timesharing because the first year that I was separated --

MR. HANSON: Your Honor, it's not even the question I'm asking. She's telling me about what she wants to tell me about.

THE COURT: Stop. What's your question?

BY MR. HANSON:

Q. My question was did you have any conversations with Mr. Davis around the time that he spoke to Ms. Hodz?

THE COURT: Just answer yes or no.

A. I don't recall.

BY MR. HANSON:

Q. You were still under a obligation from the Court's order to complete mandatory disclosures when Ms. Hodz had the conversation with Mr. Davis?

A. My understanding is we had already complied.

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In fact --

Q. I believe that was after the first order trickle and the second order trickle. I got the October 2023 forward stuff after the order was entered, but before the conversation with Ms. Hodz. And then are you aware that Ms. Hodz told me that they weren't even going to produce -- that you and Mr. Davis weren't going to produce the remainder of the Ascensus records unless I agreed to discuss the holiday schedule?

THE COURT: Answer his question.

A. No. No.

BY MR. HANSON:

Q. Are you aware that Mr. Davis leveraged the children's holiday schedule against documents that he was already under order --

MR. DAVIS: Objection to foundation and that's just not true.

THE COURT: Finish the question.

BY MR. HANSON:

Q. Are you aware that Mr. Davis, during this conversation with Ms. Hodz, at least left Ms. Hodz with the impression that he was not going to produce the remainder of the Ascensus records unless I talked about the holiday timesharing schedule on your terms?

MR. DAVIS: Object to foundation. Calls for

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hearsay. It's speculation. And it's just not true.

THE COURT: Okay. I'm sustaining your objections except for the "it's just not true" part. It's hearsay.

MR. HANSON: I think we should bring Ms. Hodz into the next hearing then.

THE COURT: Then you can call her.

MR. HANSON: I will. Your Honor, are we going to be continuing? I still have a lot of stuff to get through.

THE COURT: Yep. We're going to have to continue. Is this a good breaking point for you?

MR. HANSON: Probably so.

THE COURT: All right. You may step down, Ms. Hanson.

THE WITNESS: I think this is your copy.

THE COURT: Did you want to admit this? This is November 25th. Just two exhibits.

MR. HANSON: I think that was three.

THE COURT: Remind to make sure I do it right.

MR. HANSON: So the first one was a 12/18 email.

THE COURT: Yep. I got that one and then the only other one I have printed for you are Ms. Hanson on your behalf, which is November 25th.

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MR. HANSON: That may be the only one, Your Honor.

THE COURT: Any objection, Mr. Davis?

MR. DAVIS: It's not relevant, but other than that, no, Your Honor.

THE COURT: All right. Mr. Hanson and Ms. Hanson, you're going to have to be at my disposal a little bit. I need you to get your calendars out.

(RESPONDENT EXHIBIT NO. 2 WAS RECEIVED IN EVIDENCE.)

MR. DAVIS: Yes, ma'am.

THE COURT: First of all, can you tell me your availability for the entire morning of April 8th?

MR. DAVIS: I'm not available. I have a domestic violence injunction hearing with Judge Diskey in Pasco.

THE COURT: The 10th.

MR. DAVIS: I have a CMC at 9:00.

THE COURT: That will work and I can have you go first.

MR. DAVIS: Okay.

THE COURT: Are you available the morning of the 10th.

MR. HANSON: Yes, ma'am.

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THE COURT: Are you? You have to be present.

MS. HANSON: No. I'm in Atlanta. I fly back the 10th. Not until the afternoon, but I also have a global mediation I'm doing from Atlanta at 10:00 a.m.

THE COURT: The 14th?

MS. HANSON: I'm available the 14th.

MR. DAVIS: I am not.

THE COURT: 18th.

MR. HANSON: In the morning, Your Honor?

THE COURT: Yeah. All for the morning.

MR. HANSON: A noon cutoff?

THE COURT: Nope. It would be noon.

MR. DAVIS: I'm going to have to ask for Zoom. Here's my situation.

THE COURT: Let me tell you what this is for. This is for mediation.

MR. DAVIS: For mediation.

THE COURT: I'm going to enter an order with respect to the GAL. Mr. Hanson said he'd rather go to mediation than have a GAL. So I'm going to give him the opportunity, but I want it done in the next two weeks.

MR. HANSON: Your Honor, you're inclined to order --

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THE COURT: I haven't made a decision. I'm giving you an opportunity. I'm going to have a ruling to you on Monday. Right now I want to clear dates. Are you still standing by if I enter an order for a GAL, you would rather have a mediation before the GAL is appointed?

MR. HANSON: Absolutely.

THE COURT: I have looked up on Derek Lucas's calendar. I'm just trying to come up with someone I thought would fit both personalities. Apparently he has the morning of 8th, 10th, 14th, 18th, and 25th, but I don't want to get that far.

MR. DAVIS: If it's -- here's my issue. I have a hearing in Crestview, which is six and a half hours from here, on April 17th at 2:30. I don't know how long it's going to go. I don't know if I'll be able to drive back that night. Worst-case scenario I stay in Crestview and mediate by Zoom the next morning from Crestview, which is fine. I'm happy to do it. Whatever I can do is by Zoom.

THE COURT: He only has mornings until May. I was going to do two mornings. I'm not sure you guys can get it done in two mornings. Now we're going to get close with the end of April. Is there any other suggestions?

MR. DAVIS: For mediation?

THE COURT: Uh-huh. And someone I can get in quickly. Mr. Lucas doesn't have anything until end of mid May right now. The 18th you could make it work.

MR. DAVIS: She said by Zoom.

THE COURT: I think all mediations are by Zoom.

MR. DAVIS: Yes. I'm available all day on the 18th.

MS. HANSON: Yes.

MR. DAVIS: I don't know. I can call him and see if he can do all day.

THE COURT: I'm texting Burchell. She looked at the calendar for me. I don't have Mr. Lucas's phone number.

MR. DAVIS: I do.

THE COURT: Actually she sent me the phone number.

MR. HANSON: I cannot do all day on the 18th. I can do it until noon.

THE COURT: He did say a cutoff. Can you do the 21st?

MR. DAVIS: No, ma'am. Your Honor, respectfully, I don't think mediation is going to be fruitful. I'll go. I'm not arguing. I'll go to

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mediation.

THE COURT: Only with respect to he's going to agree to a timesharing schedule that gives him less than 50/50 or there's going to be a GAL.

MR. HANSON: So you are ordering a GAL.

THE COURT: I haven't made that decision.

MR. HANSON: I don't understand what you just said.

THE COURT: Okay. Forget it.

MR. HANSON: I'm sorry, Your Honor. I don't mean to be rude. I just didn't follow.

THE COURT: Tell me what dates you're available. Mr. Davis, what dates are you available starting next week? Same with you.

MS. HANSON: My next week I'm in Atlanta, 8th through the 10th. So next week is kind of -- I am available on the 7th now. A depo went away and I am available on the 11th.

MR. DAVIS: I can make the 8th work, but in the afternoon, Judge. The DIV hearing in Judge Diskey. I think we're the only ones set. It's very contentious.

THE COURT: Hold on. I can't pull anything off by the 8th. What's your next availability? Mrs. Hanson can do the 11th.

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MR. DAVIS: The afternoon of the 9th.

THE COURT: Start with the 11th.

MR. DAVIS: Afternoon of the 11th I can make work.

THE COURT: Davis can do 11th, p.m. Mrs. can do all day. What can you do?

MR. HANSON: I got a doctor's appointment. It's starts at 11:00 for [redacted] I'm not sure what that is. I'm guessing hour and a half. I can be ready by 1:30 or something or I can try to move it if that's the only day.

THE COURT: When do half-day mediations start? 1:00?

MR. DAVIS: 1:30.

THE COURT: Can you make it by 1:30?

MR. HANSON: By Zoom that's shouldn't be a problem.

THE COURT: Everyone, 11th p.m. What about the 14th?

MR. DAVIS: I can't do the morning. Medical appointment.

THE COURT: Just tell me.

MR. DAVIS: The afternoon I got court with Judge Bauman for awhile. I think it's a half day.

THE COURT: All right. What can you do on the

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15th?

MR. DAVIS: Depos all day.

THE COURT: 16th?

MR. DAVIS: Traveling up to Okaloosa for the period I mentioned.

THE COURT: So 17th you can make yourself available?

MR. DAVIS: No. That's when I have court in Okaloosa. 18th, Zoom. I can figure it out.

THE COURT: 18th all day.

MR. DAVIS: I would rather not stay up there all day. I'll do what I need to do.

THE COURT: Are you available the 18th, Mr. Hanson?

MR. HANSON: Yes, Your Honor. A full day of sitting is really hard for me.

THE COURT: I'm just trying to know if I can do a morning or afternoon. It's not going to be all day and you prefer the morning.

MR. DAVIS: For mediation?

THE COURT: Yeah.

MR. DAVIS: Yes, ma'am.

THE COURT: On the 18th. How about you, Ms. Hanson?

MR. DAVIS: I'm hoping if I get back here by

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noon.

THE COURT: When I say all day, I'm still doing a half a day. Make yourself available in the morning or afternoon.

MR. DAVIS: I'll figure it out.

THE COURT: Mrs. Hanson, can you do the 18th?

MS. HANSON: All day.

THE COURT: I just want to alert everyone that's Good Friday. I'm sure your kids are out of school.

MR. HANSON: I've got the kids and I don't have a lot of help for sitting. So I'm sorry. I'm glad you said that, but that will be a problem for me.

THE COURT: I'm not going past that week. I'm going to find someone on the 11th. Everyone carve out the 11th. 11th p.m. I will find a mediator for the 11th p.m. if I even go in that direction. So please mark it on your calendar.

MR. DAVIS: The 11th in the afternoon.

THE COURT: Yes.

MR. HANSON: And Your Honor, please forgive me. I just want to make sure I didn't miss --

THE COURT: I have not made a ruling.

MR. HANSON: I wasn't asking that, Your Honor. What I was asking was I said I would like to have a

mediation to explore. I'm not committing myself to a lower percentage, right?

THE COURT: Okay. No. You're not committing yourself, but you said to this Court if I'm going to appoint a GAL, you would rather not have a GAL and instead you would go to mediation and you would agree to a timesharing schedule that was less than 50 percent.

MR. HANSON: I didn't say I would.

THE COURT: Yes, you did.

MR. HANSON: I said I would negotiate it.

THE COURT: Okay.

MR. HANSON: It also depends on what my appellate options are. My goal is to stop the kids from being offered this excuse and focus that I think is going to be disastrous for them. If I can avoid that without giving up 50/50 custody, I'm going to. I don't want to give up 50/50 custody, but a bigger concern is getting them into the system. And I'm not going to agree not to pursue the discovery as part of any agreement either.

THE COURT: We're not making any agreements today.

MR. HANSON: I just don't want you to be angry with me.

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THE COURT: I'm not angry with you. I'm never angry with you. What is your availability please, everyone on May 20th? This is in front of me at 4:00 p.m. In person.

MR. HANSON: What time, Your Honor?

THE COURT: At 4:00.

MR. DAVIS: I'm available all day.

THE COURT: I have court all day.

MS. HANSON: 4:00 p.m.

THE COURT: Now, if you kind of want to hold it open, I would bet my 2:00 to 4:00, they're really close to a settlement, I might be able to start you at 2:00 and actually I was supposed to have a status with them on Monday. And they just wrote Dee Dee and said they need a little more time. They're waiting on a doctor's report.

MR. DAVIS: I'll block off 2:00 to 4:00.

THE COURT: Hold 2:00. I can always bump you up at 2:00 if that goes away and I'm pretty sure it's going to go away. Are you good at 4/20 at 4:00, Mr. Hanson?

MR. DAVIS: You said 5/20?

THE COURT: 5/20.

MR. HANSON: Yes.

THE COURT: Please hold 2:00 and if we get a

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cancellation, I'll get you guys in earlier. I won't know the day before. It will be a pretty advanced time. So hold. Now we need more time to come back on the other issues. At this juncture I'm still going to go through what's pending.

Mr. Hanson, is there anything else pending that relates directly to discovery?

MR. HANSON: There is Request to Produce 1, 2, and 3 and this was set for a hearing on the Objections to the Second Request to Produce. There's also a first and third request for production and we have objections that need to be heard.

THE COURT: All right. Here's what I'm going to do. I'm going to set a 30-minute hearing on the show cause because we're going to have to break this down so I can allocate time and then be able to issue rulings. On the amended order to show cause, everyone was available the afternoon of 11th, right?

MR. DAVIS: Yes, ma'am.

MR. HANSON: That's mediation, right?

THE COURT: Yep. All right. What about -- what's the next afternoon you guys have available? The 15th for a 30-minute hearing in person.

MS. HANSON: 15th I'm available.

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MR. DAVIS: Depos all day and they're already rescheduled.

THE COURT: No problem. 22nd?

MS. HANSON: I can do it.

MR. DAVIS: At what time?

THE COURT: In person though, Mr. Davis.

MR. DAVIS: I understand.

THE COURT: Mr. Hanson, was that okay?

MR. HANSON: April 22nd at 4:00.

THE COURT: 4:30, 4/22.

MR. HANSON: Yes.

THE COURT: That's the Amended Order to Show Cause and the Response, Docket 135 and 137.

MR. DAVIS: Does Ms. Hanson need to attend?

THE COURT: No.

MR. DAVIS: It's really not ability her.

THE COURT: No. No.

MR. HANSON: Your Honor, I do object to that and all of these issues are interrelated and require --

THE COURT: Okay. But the Amended Order to Show Cause is not an evidentiary hearing. For non-evidentiary hearing you don't have to have the parties there. I'm not going to take any evidentiary -- the only person that I might put on

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the stand and won't be too happy about it would be Ms. Hayward. She's lucky she's on vacation today or else I'd give her a heads up. But Ms. Hanson hasn't been involved in any of the communications. She wouldn't be called as a witness regardless.

All right. So next is the discovery, which is 101 and 162. And do you know the ones he wants to add, Mr. Davis? I think they would probably be appropriate to be added.

MR. DAVIS: Sure. That's fine.

THE COURT: So we'll add those discoveries. How much time do you think you need for your objection? Do you think we need two hours?

MR. DAVIS: It should be a 30-minute hearing, but it won't be. I don't want to cast dispersions, but it won't be.

THE COURT: How long do you need for your discovery motions that you were just asking Dee Dee to set?

MR. HANSON: I'll likely need Sarah's testimony. Again, I don't know if we can do it at the same time.

THE COURT: No. We're getting a whole separate hearing. I'm going to give you an allotted time and make a ruling. And again, discovery issues have

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nothing to do with evidence. It's objections. We're going to go through and say did they comply or didn't comply and I'm going to make a ruling. Are you trying to go back or are you trying to get new stuff? I have it right here.

MR. HANSON: I think -- so the Third Request to Produce is for legal bills primarily.

THE COURT: Yeah. Respondent's Motion to Compel Production of Respondent's Third Request.

MR. HANSON: That's the legal bills. The first one was is the original one my first law firm did and the second one is metadata.

THE COURT: Have those been heard?

MR. HANSON: No.

THE COURT: According to my notes, we are up to date as of February. Everything's been heard.

MR. DAVIS: What he's saying, I think, is the discovery issue for the first one is the same issue, from my perspective, unless I'm making a mistake, is the same issue as the Chase subpoenas on the notice for production from nonparty.

THE COURT: Stop. I need you to send an email to Dee Dee telling me what discovery motions you believe are outstanding and you want to have heard. And I will go through and see if they've already

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been ruled on. Sir, right now all that was set for today was 101 and your response of 162. I have since -- I've got them right here sent Dee Dee more and you've asked for more discovery motions. For instance, the one you filed on 3/25, Docket 163, you've asked to be heard. So I need you to go through docket because we're going to be done with discovery. I'm not going to hear any more discovery motions, that have already been filed. You're free to file new ones.

We're going to come and have this discovery hearing and any outstanding discovery motions you're going to tell Dee Dee what you need and Mr. Davis, you're going to respond, and I'm going to look at it and tell you which ones are being heard. But right now, for sure, 101 and 162 are being heard. How long do you need to send that list to Dee Dee?

MR. HANSON: If it's only the ones that have been filed, I think she already has it.

THE COURT: Just give her a list with the docket numbers. Your docket is so voluminous already that I just need docket numbers. Typically we get in and out of these cases. You're already up to 172 dockets. So I know you have this 163, but just send her a list of your discovery. Only your

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discovery that you believe have not been adjudicated and in addition, we're going to hear 101 and 162. Let's clear a time for that. Basically it looks like nobody has any more time in April.

MR. HANSON: I'm sorry. Your Honor, are you saying --

THE COURT: 4:30 and 4/22 is the Amended Order to Show Cause. That's the communications motion.

MR. DAVIS: More time in April, I can do April 30th.

THE COURT: I don't have anymore time.

MR. DAVIS: I thought you were asking us. I apologize.

THE COURT: I know and then I realized I don't have any. I don't have any time in May either. What do you have on June 10th?

MR. DAVIS: One hour hearing at 2:00.

THE COURT: You're not with me, are you? It is you.

MR. DAVIS: I was going to say maybe it was Division C.

THE COURT: It's you.

MR. DAVIS: I was thinking it transferred to D. So yes, it is me.

THE COURT: It is me.

MR. DAVIS: I'm open the rest of the day.

THE COURT: Let's do 3:00 on 6/10. Does that work for you, Mr. Hanson?

MR. HANSON: I'm going to have a child care issue, but if that's --

THE COURT: You want your discovery. 6/10, 3:00 p.m. will be the discovery motion 101, Mr. Hanson's response, 162. Mr. Hanson is going to send a list to Dee Dee by when? You've got some time.

MR. HANSON: Again, I'll just look right now. I think I had the docket numbers on what I sent this morning. I know I do.

THE COURT: Well, you have time. Mr. Davis, you have time to respond if you think it's been adjudicated and I'll go through the docket and double check.

MR. DAVIS: Just for the Court's edification, I think we are going to settle the 2:00 between now and then.

THE COURT: If you do, I'll bump you up.

MS. HANSON: I have a depo. Do I need to be here for that one? The depo might go away.

MR. DAVIS: It's discovery.

THE COURT: She doesn't need to be for

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discovery.

MR. HANSON: Your Honor, again, I'm going to object. I have questions that I would like to address with her.

THE COURT: It's not an evidentiary hearing, sir.

MR. HANSON: I'm not entitled to set it as that and call her.

THE COURT: I've never seen it happen. I'd have to check the rule on that. Normally --

MR. HANSON: You understand what my argument is, right, Judge? They're intentionally doing things they shouldn't be doing to avoid discovery, conceal information.

THE COURT: To frustrate yourself with your timesharing with your kids.

MR. HANSON: December 13th, they filed four motions when Mr. Davis hadn't filed a single one for five months, as my attorney is withdrawing on a day's notice over my objection. When I emailed the Court I wasn't available on December 13th, the Court set it any ways. So it's a pretty extreme manner of harassing and burdening someone to the umpteenth degree, who's reluctantly unrepresented. You know, that's been --

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THE COURT: This seems to be the issue that is causing you the most anxiety, sir. I want to get this taken care of. I want to come in and talk about all the discovery. I have to be honest with you. After today, I'm still a little confused on where we're missing the documents and I'm not usually confused. I want it to be abundantly clear because I still have a different understanding. My understanding is that she was providing you documents and it kind of slowed down when she became aware of the fact that because you had the marital settlement agreement, she didn't have to disclose it all. That's still the impression I'm under. You guys can come back and tell me I'm wrong. That's fine. I don't mind, but I still -- Mr. Hanson, when you come back to that hearing I need to be abundantly clear specifically what documents she has not provided that you think you are entitled to that I haven't already ruled on.

MR. HANSON: Your Honor, there's many points in the different hearings where you tell me that I need to file the motion to void the --

THE COURT: You have it filed.

MR. HANSON: Right. Is that a CMC conference?

THE COURT: That's not a CMC. That's a

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half-day trial.

MR. HANSON: The plan was to do the CMC to figure if the subpoena can just goes out. I think all this goes away.

THE COURT: No. The CMC, I have my notes from Dee Dee, was to decide when you want to set the motion to void the post MSA. Actually we should probably hear that first because that's going to come into -- no. It won't come into play. When we have your discovery day, I now know you have a motion to void. That's going to open up the discovery a little bit more because you have a right to inquire as to whether you have a valid reason for voiding the MSA.

MR. HANSON: Right. So why not get the discovery going now?

THE COURT: I can't get you in until June.

MR. HANSON: We can just talk about it now. There's a motion to void --

THE COURT: Sir, I have two bailiffs --

MR. HANSON: I have a right to investigate into whether there's a reasonable -- there's no disclosure. I really don't understand the Court's thought process in putting this family through this for a year. It's literally a year now. If you look

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back at May filing, I say the same thing. I plead with the Court and say don't let this happen to my family and I've done my best. I've been honest. I've worked hard. No one's accused me of doing anything unethical.

THE COURT: Sir, with all due respect, why it's so hard to get time with me is because of cases like this. That my docket -- I have 800 cases and my judicial assistant responds to you every day. I read something that you file every single day. I take the Hanson file -- I've never made a file with someone's name on it until you. The Hanson file is going home with me this weekend so I can get caught up and make sure that you don't become frustrated with me because I'm not timely responding. I respond to your things so fast. You butted other people that I've got another folder that I have competing order I need to do, but you send something to me every single day. And I spend my offer hours and weekends dealing strictly with the Hanson case. And I'm going to continue to do that because I can feel your frustration. I can't give you any more time. You've had more time in this case than a case to resolve the whole thing and you keep coming back and asking me for things I've already ruled on.

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So I'm going to do what you need to do, but you want your discovery. You didn't even get -- I expected to get through all of our motions today. We got through two. Two.

MR. HANSON: A lot of it was the questions weren't being answered.

THE COURT: No, sir. A lot of it was that you asked all financial questions today when I specifically said the only thing we're going to talk about right now is the motion for GAL and the timesharing issue and the motion for your psych eval. You -- all you wanted to talk about is how upset you are still about these documents. I'm going to give you time to do it, but we couldn't get to it today because you didn't address the other issues. I couldn't even get to the motion -- that's another thing we didn't get to. The vocational evaluation. I've got to get that. There's so many pending motions in this case and I only have so much time in the day.

I know you think I'm not treating you fair, but I'm overly treating you fair and giving you extra time and attention. I can't sit here today at 5:30 on a Friday with my relief bailiffs and have you go through the motion to void. The motion to void is a

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big hearing. It's a big legal threshold on voiding an MSA.

MR. HANSON: But you understand you have to have evidence to address it? To address the reasonableness. You're not allowing me to get the evidence.

THE COURT: No. That's why we're coming back in June. I agree with you now. You have now opened a door to entitle yourself to more evidence.

MR. HANSON: Let's do the subpoena now.

THE COURT: Sir.

MR. HANSON: There's an objection to the subpoena. I'll find it. The purpose of this was to have 15 minutes before -- we were trying to do it before even today.

THE COURT: I've already told you all discovery issues will be held on this June date. I need -- that will be your subpoena issue. Anything with respect to discovery, with respect to what you want from Ms. Hanson, what you want in order to come back and successfully argue to me that I should void the MSA, you are going to be able to get the discovery that is legally allowed in order to come back and do that.

MR. HANSON: So I have to void the MSA to get

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discovery?

THE COURT: No. That wouldn't make sense.

MR. HANSON: It doesn't.

THE COURT: Right. I'm going to do the discovery first.

MR. HANSON: Then it's just baffling.

THE COURT: You just said you need two hours to do it, sir.

MR. HANSON: The hearing transcripts say if you file a motion to void, we'll get the subpoena out and this will begin to end.

THE COURT: No. It says --

MR. HANSON: Your Honor, have you ever had to disqualify yourself from an issue involving a Guardian ad Litem?

THE COURT: No.

MR. HANSON: Are you sure? Anything about having lunch with one or something like that or any association?

THE COURT: Sir, you are inappropriate.

MR. HANSON: Your Honor, I have very serious concerns about my children.

THE COURT: I'm not answering a question and I don't know what you're talking about. I'm not on trial, sir. You are.

MR. HANSON: But Your Honor, I do have concerns about my kids.

MR. DAVIS: My client needs to get the kids. I'll stay here. I'll gladly stay here.

THE COURT: Thank you. You may leave.

MR. DAVIS: Thank you. I'll stay as long as the Court wants.

THE COURT: I can't do this to the bailiffs.

MR. HANSON: Your Honor, I would ask that you request the video you referenced.

THE COURT: No, sir.

MR. HANSON: I thought you said that you could.

THE COURT: Sir, you're crossing the line. This hearing is ended. I will get to you, Mr. Davis, anything I didn't address. I know I didn't get your vocation thing. If you'll send in dates, we'll get that all set.

MR. DAVIS: Is the Court going to rule on any of the motions?

THE COURT: No. I'm sending an email right.

MR. HANSON: Your Honor, I will just let you know I'm going to be filing a motion to disqualify and motion to stay pending the writ if that has any impact.

THE COURT: No, it does not.

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(The court proceeding concluded at 5:20 p.m.)

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REPORTER'S CERTIFICATE

STATE OF FLORIDA

COUNTY OF HILLSBOROUGH

I, NIKA M. PRIESTLEY, certify that I was authorized to and did stenographically report the foregoing court proceeding and that the transcript is a true and complete record of my stenographic notes.

I further certify that I am not a relative, employee, attorney, or counsel of any of the parties, nor am I a relative or employee of any of the parties' attorney or counsel connected with the action, nor am I financially interested in the action.

DATED this 8th day of May, 2025



_____
NIKA M. PRIESTLEY
Stenograph Shorthand Reporter
Notary Public, State of Florida
Commission No.: HH476019
Expires: April 22, 2028

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